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ENGLISH INTERFERENCE WITH IRISH INDUSTRIES.

BY
J. G. SWIFT MAC NEILL, M.A.

CASSELL & COMPANY, LIMITED

LONDON, PARIS, NEW YORK & MELBOURNE.

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BY
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WAS, AND WHAT IT DID."

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1886.

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PREFACE.

Agriculture is at the present time almost the only industry in Ireland. This fact has frequently been noticed and deplored. Public men of widely different views on other matters agree in their estimate of Ireland's economic condition, of which they give but one explanation. Thus Mr. Gladstone, on the introduction of the Irish Land Bill in April, 1881, spoke of "that old and standing evil of Ireland, that land-hunger, which must not be described as if it were merely an infirmity of the people for it, and really means land scarcity."^[1] "In Ireland," says Mr. Bright, "land, from certain causes that are not difficult to discover, is the only thing for the employment of the people, with the exception of some portion of the country in the North; the income for the maintenance of their homes, and whatever comfort they have, or prospect of saving money for themselves or their families, comes from the cultivation of the soil, and scarcely at all from those various resources to which the people of England have recourse in the course of their industrial lives."^[2]

"It is generally admitted, I think, on both sides of the House," Mr. Bright observes in another debate, "that in discussing the Irish question one fact must always be kept in mind—that is, that apart from the land of Ireland there are few, if any, means of subsistence for the population, and, consequently, there has always been for its possession an exceptional and unnatural demand. This, again, has led to most serious abuses, including nearly all those constant causes of trouble and complaint we are for ever hearing of in Ireland."^[3]

"The truth is," says Mr. Chaplin, from his place in the House of Commons, "that the English Parliament and the English people are mainly responsible for those conditions of the country which have driven the people to the land, and the land alone, for their support. It was not always so; there were other industries in Ireland in former days, which flourished, and flourished to a considerable extent, until they first aroused, and were afterwards suppressed by, the selfish fears and commercial jealousy of England—England, who was alarmed at a rivalry and competition that she dreaded at

the hands and from the resources and energy of the Irish people."^[4] "I am convinced that it is in the history of these cruel laws that lies the secret of that fatal competition for the land, in which—and it may well be a just retribution upon us—the source of all the troubles and all the difficulties that you have to deal with will be found."^[5]

"To understand the Irish land question of to-day," writes Sir C. Russell, the present Attorney-General for England, "it is necessary to look back. I have no desire needlessly to rake up bygone wrongs. I wish to Heaven the Irish people could forget the past. For them it is in the main a melancholy retrospect. But England ought not to forget the past—until, at least, a great act of reparation has been done. Even among men of some education in England, remarkable ignorance of the evil wrought in past times by England towards Ireland prevails. There is, indeed, a vague general impression that in very remote times England, when engaged in the endeavour to conquer Ireland, was guilty of cruelties, as most conquering nations are, but that those things have done very little harm; that their effects have ceased to tell, and that the only purpose served by keeping alive their memory is to irritate the temper of the Irish people and prompt them to look back rather than look forward. Emphatically I say this is not so. The effects have not ceased. It is not too much to say that Ireland and Irishmen of to-day are such as English government has made them." Sir Charles Russell then proceeds to place foremost among "the agencies employed by England which have left enduring evil marks upon Ireland," "the direct legislation avowedly contrived to hinder the development of Irish commerce and manufactures."^[6]

"If people felt impatient with the Irish," said Mr. Fawcett, addressing a political meeting at Shoreditch on November 2nd, 1881, "they should remember that the Irish were, to a great extent, what England had made them. If there were some Irishmen now displaying bitter hostility to England, it should be remembered that for a long time Ireland had been treated as if she had been a hostile or a foreign country. A mass of vexatious restrictions were imposed on her industry, and it was thought that if any branch of Irish trade interfered with English profits, that branch of Irish trade was immediately to be discouraged. For a long time, for instance, to please the agricultural interests of this country, the importation of live cattle from Ireland was absolutely prohibited."

These statements of leading public men are strong evidence of the far-reaching effects upon Ireland of a system which Mr. John Morley, writing on a literary topic, has not hesitated to designate as "the atrocious fiscal policy of Great Britain,"^[7] and for which Earl Cowper, speaking at Belfast as Lord-Lieutenant of Ireland, could find no gentler adjectives than "unjust and iniquitous."^[8]

In the following pages I propose to exhibit summarily the material injuries inflicted upon Ireland by the commercial or anti-commercial arrangements of Great Britain. With this view, I will endeavour to sketch in outline the political relations of Ireland to Great Britain which rendered such arrangements possible (Chap. I.); the principal laws made by the English Parliament in restraint of Irish trade stating them in a plain and popular manner (Chap. II.); the opposition of the English Government to the efforts of the Irish Parliament to promote Irish trade (Chap. III.); the immediate effects of English legislation on Irish trade (Chap. IV.); the Irish Volunteer Movement and free trade (Chap. V.); the commercial arrangements between Great Britain and Ireland, 1782-1800 (Chap. VI.); the commercial arrangements effected between Great Britain and Ireland by the Act of Legislative Union (Chap. VII.).

In this inquiry I will, as far as possible, confine myself to an examination of the statutes, which will speak for themselves; to the journals of the Parliaments of England and Ireland; and to the statements of contemporary speakers and writers whose accuracy has not, so far as I am aware, been impeached.

FOOTNOTES:

^[1] Hansard, 260, Third Series, p. 893.

^[2] Hansard, 261, Third Series, p. 96.

^[3] Hansard, 261, Third Series, pp. 831, 832.

^[4] Hansard, 261, Third Series, P. 851.

^[5] Hansard, 261, Third Series, p. 853.

^[6] "New Views on Ireland," by C. Russell, Q.C., M.P., pp. 83, 84.

^[7] "English Men of Letters"—"Edmund Burke," by John Morley, p. 76.

^[8] *Freeman's Journal*, Nov. 24th, 1881.

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ENGLISH INTERFERENCE
WITH
IRISH INDUSTRIES.

CHAPTER I.

THE POLITICAL RELATIONS OF IRELAND TO GREAT BRITAIN.

The interference of the English Government with Irish trade before 1782 was twofold, direct and indirect. The direct interference arose from statutes passed in the English Parliament in restraint of Irish commerce. The indirect interference arose from the influence of the English Government over the legislation of the Irish Parliament, under the provisions of the statute known as Poynings' Act.

"From the admitted dependence," says Mr. Butt, "of the Crown of Ireland upon that of England, arose the claim of the English Parliament to legislate for Ireland. Over all the colonies and dependencies of the British Crown, the British Parliament had exercised the right of legislation. Over Ireland they asserted the same right. I need not tell you how fiercely it was contested, and that it was finally abandoned in 1782. But, up to 1782, the right was asserted, and occasionally exercised."^[9]

These English statutes were chiefly aimed against the Irish manufactures, and were, of course, clear violations of Ireland's Parliamentary independence. The 6th Geo. I. passed by the English Parliament^[10] claimed the power of British legislation over Ireland, a power which had been exercised long previously. "If that power," said Mr. O'Connell, "so claimed, had really existed, where was the necessity for passing that statute? and while this Act proclaims the slavery of Ireland, it admits the pre-existence of freedom."^[11]

The nature and effects of Poynings' Act, and the control given to the English Government by its provisions over Irish legislation, are thus concisely stated by Mr. Butt: "To complete our view of the Irish Parliament, we must remember that by an Act of that Parliament itself a most important restriction was placed upon its legislative powers. By an Irish Act of Parliament, passed in the reign of Henry VII., in the year 1495, it was enacted that no bill should be presented to the Irish Parliament until the heads of it had been submitted to the English Privy Council, and certified as

approved of under the Great Seal of England. This law is known as Poynings' Law, from the name of the person who was Lord Deputy when it was passed. This law was a matter entirely distinct from any claim of the English Parliament to legislate for Ireland; it was a law of the Irish Parliament itself, passed by the King, Lords, and Commons of Ireland, deriving its authority from a source entirely independent of the English claim, and continuing in force when that claim was abandoned. The original law required the assent of the English Privy Council to be given to the intended bill before Parliament met. In the reign of Queen Mary it was modified so as to admit of that assent being given while Parliament was sitting; but that assent was still necessary to authorise the introduction of the bill. With this modification the law of Poynings continued in force up to 1782."^[12]

We see, accordingly, that England claimed or exercised direct legislative control in her own Parliament over Ireland; while no Irish bills could become law or, indeed, in strictness, be introduced into the Irish Parliament without the sanction of the English Privy Council.^[13]

"Ireland," says Mr. Froude, "was regarded as a colony to be administered, not for her own benefit, but for the convenience of the mother country."^[14]

FOOTNOTES:

^[9] "Proceedings of the Home Rule Conference," 1873, p. 8.

^[10] 6 Geo. I., c. 5 (Eng.).

^[11] "Report of the Discussion in the Dublin Corporation on Repeal of the Union," 1843, p. 23.

^[12] "Proceedings of the Home Rule Conference," 1873, pp. 8, 9.

^[13] For further account of the constitution and powers of the Irish Parliament, see "The Irish Parliament: What it Was, and What it Did," by J. G. Swift MacNeill, published by Cassell & Company, Limited.

^[14] "English in Ireland," vol. i., p. 178.

CHAPTER II.

ENGLISH LEGISLATION IN RESTRAINT OF IRISH TRADE.

Persons familiar with the relative economic conditions of Great Britain and Ireland at the present time, will find it difficult to realise that at one period Ireland enjoyed natural advantages in no respect inferior to those of the sister country. This, before the development of steam-power, was undoubtedly the fact. This would be still the case were it not for the dearth of coal in Ireland.^[15] The evidence of public men of the last century, who were well acquainted with the circumstances of both countries, is on this point conclusive. "Ireland," writes Edmund Burke in 1778, "is a country in the same climate and of the same natural qualities and productions with this (England)."^[16] "In Ireland," writes Hely Hutchinson in 1779, "the climate, soil, growth, and productions are the same as in England."^[17] Plunket, in his speech against the Union, delivered in the Irish Parliament on the 15th of January, 1800, draws a comparison between England and Ireland, in which he describes England as "another happy little island placed beside her (Ireland) in the bosom of the Atlantic, of little more than double her territory and population, and possessing resources not nearly so superior to her wants."^[18] Mr. Froude's researches lead him to a similar conclusion: "Before the days of coal and steam, the unlimited water-power of Ireland gave her natural advantages in the race of manufactures, which, if she had received fair play, would have attracted thither thousands of skilled immigrants."^[19]

I do not propose to furnish an exhaustive statement of the various laws passed by the English Parliament for the avowed purpose of destroying Irish trade and manufactures. I will deal only with the salient features of that system whose effects are, at the present day, sadly apparent.

Till the reign of Charles II., England placed no restriction on Irish commerce or manufactures. "Before the Restoration," says Lord North, in the British House of Commons, "they (the Irish) enjoyed every commercial advantage and benefit in common with England."^[20] "Ireland," writes Hely

Hutchinson, "was in possession of the English common law and of Magna Charta. The former secures the subject in the enjoyment of property of every kind, and by the latter *the liberties of all the ports of the Kingdom are established*."^[21] "Our trade," says Mr. Gardiner in the Irish House of Commons, "was guaranteed by Magna Charta, our exports acknowledged by that venerable statute—no treaty was made in which we were not nominally or virtually included."^[22] By one of the provisions of Poynings' Law, passed in 1495, all statutes hitherto in force in England were extended to Ireland. Before that enactment, however, Ireland is expressly mentioned in several English commercial statutes, in which clauses are inserted for the protection of her trade.^[23] "At this period (1495)," says Hely Hutchinson, "the English commercial system and the Irish, so far as it depended on English statute law, was the same; and before this period, so far as it depended on the common law and Magna Charta, was also the same. From that time till the 15th of King Charles II., which takes in a period of 167 years, the commercial constitution of Ireland was as much favoured and protected as that of England."^[24]

The first Navigation Act of 1660 put England and Ireland on exact terms of equality.^[25] This community of rights was emphasised by an Act of the following year, which provided that foreign-built ships should not have the privilege of ships belonging to England and Ireland.^[26] "But," as Mr. Froude observes, "the equality of privilege lasted only till the conclusion of the settlement and till the revenue had been assigned to the Crown."^[27] In the amended Navigation Act of 1663, Ireland was left out. Lord North, on December 13, 1779, when Prime Minister of England, in introducing a bill to abrogate some of the restrictions on Irish trade, thus described the Act of 1663: "The first commercial restriction was laid on Ireland not directly, but by a side-wind and by deductive interpretation. When the Act (the Navigation Act of 1660) first passed there was a general governing clause for giving bonds to perform the conditions of the Act; but when the Act was amended in the 15 Car. II. the word 'Ireland' was omitted, whence a conclusion was drawn that the Acts of the two preceding Parliaments, 12 & 13 and 14 Car. II., were thereby repealed, though it was as clearly expressed in those Acts as it was possible for words to convey, that ships built in Ireland, navigated with the people thereof, were deemed British, and qualified to trade to and from British Plantations, and that ships built in

Ireland and navigated with his Majesty's subjects of Ireland, were entitled to the same abatement and privileges to which imports and exports of goods in British-made ships were entitled by the book of rates. Ireland was, however, omitted in the manner he had already mentioned."^[28]

This Act, which is entitled "An Act for the Encouragement of Trade," prohibited all *exports* from Ireland to the colonies.^[29] It likewise prohibited the importation of Irish cattle into England. It states that "a very great part of the richest and best land of this kingdom (England) is, and cannot so well otherwise be employed and made use of as in the feeding and fattening of cattle, and that by the coming in of late in vast numbers of cattle already fatted such lands are in many places much fallen, and like daily to fall more in their rents and values, and in consequence other lands also, to the great prejudice, detriment, and impoverishment of this kingdom;"^[30] and it imposes a penalty on every head of great cattle imported. A subsequent British Act declares the importation of Irish cattle into England to be "a publick and common nuisance."^[31] It likewise forbids the importation of beef, pork, or bacon. Butter and cheese from Ireland were subsequently excluded, and the previous statute excluding cattle was made perpetual.^[32] In 1670 the exportation to Ireland from the English Plantations of sugar, tobacco, cotton-wool, indigo, ginger, fustic or other dyeing wood, the growth of the said Plantations, was prohibited by statute. It is stated in the statute that this restraint was intended by the Act of 1663, but not effectively expressed.^[33]

"There are," says Lord North, "anecdotes still extant relative to the real causes of those harsh and restrictive laws. They were supposed to have originated in a dislike or jealousy of the growing power of the then Duke of Ormonde, who, from his great estate and possessions in Ireland, was supposed to have a personal interest in the prosperity of that kingdom. Indeed, so far was this spirit carried, whether from personal enmity to the Duke of Ormonde, from narrow prejudices, or a blind policy, that the Parliament of England passed a law to prohibit the importation of Irish lean cattle."^[34]

An extensive and profitable cattle trade which Ireland had established with Bristol, Milford, and Liverpool was annihilated by this legislation. With the restriction of her chief exports, her shipping trade suffered a simultaneous

eclipse. Such direct trade as she retained was with France, Spain, and Portugal, as if England wished to force her, in spite of herself, to feel the Catholic countries to be her best friends.^[35] Till 1663 the Irish had, according to Carte, no commerce but with England, and scarcely entertained a thought of trafficking with other countries.^[36] This writer gives melancholy evidence as to the immediate effect of that restrictive legislation. "The people," he says, "had no money to pay the subsidies granted by Parliament, and their cattle was grown such a drug, that horses that used to be sold for 30s. were now sold for dogs' meat at 12d. apiece, and beeves that brought before 50s. were now sold for ten."^[37]

Deprived of their trade, the Irish people, under the guidance of the Duke of Ormonde, set themselves resolutely to improve their own manufactures. "The history of Ireland," says Chief Justice Whiteside, "for nigh half a century may be read in the life, actions, and adventures of this able, virtuous, and illustrious man. His chivalrous courage, his unflinching loyalty, his disinterested patriotism, mark him out as one of the foremost men of his noble family, and as one of the finest characters of his age."^[38] In 1692, Lord Sydney, the Lord-Lieutenant, in his speech from the Throne, was able, from his former knowledge of the country, to testify to its vastly increased prosperity.^[39] "The cause of this prosperity should," says Hely Hutchinson "be mentioned. James, the first Duke of Ormonde, whose memory should ever be revered by every friend of Ireland, to heal the wound that this country had received by the prohibition of the export of her cattle to England, obtained from Charles II. a letter, dated the 23rd of March, 1667, by which he directed that all restraints upon the exportation of commodities of the growth or manufacture of Ireland to foreign parts should be taken off, but not to interfere with the Plantation laws, or the charters to the trading companies, and that this should be notified to his subjects of this kingdom, which was accordingly done by a proclamation from the Lord-Lieutenant and Council; and at the same time, by his Majesty's permission, they prohibited the importation from Scotland of linen, woollen, and other manufactures and commodities, as drawing large sums of money out of Ireland, and a great hindrance to manufactures. His grace successfully executed his schemes of national improvement, having by his own constant attention, the exertion of his extensive influence, and the most princely munificence, greatly advanced the woollen and revived

the linen manufactures."^[40] Ormonde established a woollen manufactory at Clonmel, "the capital of his county palatine of Tipperary, bringing over five hundred Walloon families from the neighbourhood of Canterbury to carry it on, and giving houses and land on long leases with only an acknowledgment instead of rent from the undertakers. Also in Kilkenny and Carrick-on-Suir the duke established large colonies of those industrious foreigners, so well skilled in the preparation and weaving of wool."^[41]

The woollen manufacture was the "true and natural staple of the Irish, their climate and extensive sheep-grounds insuring to them a steady and cheap supply of the raw material, much beyond their home consumption."^[42] It was cultivated for several years after the Revolution without any interference by the English Parliament. It had, however, long previously excited the jealous hatred of English statesmen. "I am of opinion," says Lord Strafford, writing, when Lord-Lieutenant, from Ireland to Charles I. in 1634, "that all wisdom advises to keep this kingdom as much subordinate and dependent upon England as is possible, and holding them from the manufacture of wool (which, unless otherwise directed, I shall by all means discourage), and then enforcing them to fetch their clothing from thence, and to take their salt from the King (being that which preserves and gives value to all their native staple commodities), how can they depart from us without nakedness and beggary? Which is of itself so mighty a consideration that a small profit should not bear it down."^[43] This proposal I will not characterise. "In 1673, Sir William Temple, at the request of the Earl of Essex, then Viceroy of Ireland, publicly proposed that the manufacture of woollens (except in the inferior branches) should be relinquished in Ireland as tending to interfere prejudicially with the English trade. In all probability the Irish manufacturers of broadcloths would gain on their English rivals, and the improvement of woollen fabrics in Ireland, argued the statesman, 'would give so great a damp to the trade of England, that it seems not fit to be encouraged here.'"^[44] These suggestions were not immediately acted on. In 1660 no doubt the exportation of Irish woollen goods to England was prohibited, but this enactment did not at the time inflict material injury on Ireland.^[45]

In 1697 a bill was introduced into the English House of Commons, forbidding all export from Ireland of her woollen manufactures. It reached

the House of Lords, but Parliament was dissolved before it passed its final stage in that assembly.

The destruction of the woollen trade is one of the most disastrous chapters of Irish history. The circumstances attending this transaction are detailed in an Appendix to the "Report from the Select Committee on the Linen Trade of Ireland," which was printed on the 6th of June, 1825, by order of the House of Commons. This paper was prepared by Lord Oriel, who, as Mr. Foster, was Chancellor of the Irish Exchequer and afterwards Speaker of the Irish House of Commons. He was one of the greatest authorities of his time on trade and finance. The Report thus describes an incident which is, I believe, without parallel.

"This export (the woollen) was supposed to interfere, and very probably did, with the export from Britain, and a plan was in consequence undertaken there to annihilate the woollen trade of Ireland, and to confine us to the linen manufacture in its place.

"Accordingly an Act was passed in England, 1696 (7 & 8 Will., c. 39), for inviting foreign Protestants to settle in Ireland, as the preamble recites, and with that view enacting that the imports of all sorts of hemp and flax, and all the productions thereof, should from thenceforth be admitted duty free from Ireland into England, giving a preference by that exemption from duty to the linen manufacture of Ireland over the foreign, estimated at the time, as a report of the Irish House of Commons, on the 11th February, 1774, states, to be equal to 25 per cent.

"This happened in 1696, and in pursuance of the foregoing plan both Houses of the English Parliament addressed King William on the 9th June, 1698.

"The Lords stated in their Address that 'the growing manufacture of cloth in Ireland, both by the cheapness of all sorts of necessities of life, and the goodness of materials for making all manner of cloth, doth invite your subjects of England, with their families and servants, to leave their habitations and settle there, to the increase of the woollen manufacture in Ireland, which makes your loyal subjects in this kingdom very apprehensive that the further growth of it may greatly prejudice the said manufacture here, by which the trade of this nation and the value of lands will greatly decrease, and the number of your people be much lessened here; wherefore

we humbly beseech your most Sacred Majesty that your Majesty would be pleased, in the most public and effectual way that may be, to declare to all your subjects of Ireland that the growth and increase of the woollen manufacture there hath long and will be ever looked upon with great jealousy by all your subjects of this kingdom, and if not timely remedied, may occasion very strict laws totally to prohibit and suppress the same; and, on the other hand, if they turn their industry to the settling and improving the *linen manufacture*, for which generally the lands are very proper, *they shall receive all the countenance, favour, and protection from your royal influence for the encouragement and promotion of the linen manufacture to all the advantage and profit they can be capable of.*

"The Commons stated their sentiments at the same time in the following terms: 'We, ^[46] your Majesty's most dutiful and loyal subjects, the Commons in Parliament assembled, being very sensible that the wealth and power of this kingdom do in a great measure depend on the preservation of the woollen manufacture as much as possible entire to this realm, think it becomes us, like our ancestors, to be jealous of the increase and establishment of it elsewhere, and to use our utmost endeavours to prevent it. And, therefore, we cannot without trouble observe that Ireland, which is dependent on and protected by England in the enjoyment of all they have, and which is so proper for the linen manufacture, the establishment and growth of which there would be so enriching to themselves, and so profitable to England, should of late apply itself to the woollen manufacture, to the great prejudice of the trade of this kingdom, and so unwillingly promote the linen trade, which would benefit both themselves and us; the consequence whereof will necessitate your Parliament of England to interpose to prevent the mischief that threatens us, unless your Majesty by your authority and great wisdom shall find means to secure the trade of England, by making your subjects of Ireland to pursue the joint interests of both kingdoms. And we do most humbly implore your Majesty's protection and favour in this matter, that you will make it your royal care, and enjoin all those you employ in Ireland to make it their care, and use their utmost diligence, to hinder the exportation of wool from Ireland except to be imported hither, and for discouraging the woollen manufacture and encouraging the linen manufacture of Ireland, *to which we shall always be ready to give our utmost assistance.*'

"His Majesty thus replied to the Commons^[47]:—'*I shall do all that in me lies to discourage the woollen manufacture in Ireland and encourage the linen manufacture there, and to promote the trade of England.*'

"Stronger declarations could not well be made than in these Addresses and answers, that if the Irish would come into the compact of giving up their then great staple of woollens to England, and cultivating the linens in lieu thereof, they should receive '*all the countenance, favour, and protection for the encouragement and promotion of their linen manufacture to all the advantages their kingdom was capable of,*' that the Commons would always be ready to give their utmost assistance, and his Majesty would do all that in him lay *to encourage the linen manufacture there*; and they had the effect of inducing the Parliament of Ireland to accede, as will appear from what follows.

"The Lords Justices of Ireland say, in their speech to the Irish Parliament, the 27th September, 1698:^[48] '*Amongst those bills there is one for the encouragement of the linen and hempen manufactures. At our first meeting we recommended to you that matter, and we have now endeavoured to render that bill practicable and useful for that effect, and as such we now recommend it to you. The settlement of this manufacture will contribute much to people the country, and will be found much more advantageous to this kingdom than the woollen manufacture, which, being the settled staple trade of England, can never be encouraged here for that purpose; whereas the linen and hempen manufactures will not only be encouraged, as consistent with the trade of England, but will render the trade of this kingdom both useful and necessary to England.*'

"The Commons replied: 'We pray leave to assure your Excellencies that we shall heartily endeavour to establish a linen and hempen manufacture here, and to render the same useful to England, as well as advantageous to this kingdom; and we hope to find such a *temperament* in respect to the woollen trade here that the same may not be injurious to England.'^[49] In pursuance of this answer they evinced that *temperament* most effectually by passing an Act^[50] for laying prohibitory duties on the export of *their own* woollen manufacture—thus accepting the national compact and fully performing their part of the agreement, and by that performance giving an incontrovertible claim to Ireland upon England, and consequently upon

Great Britain, for a perpetual encouragement of the linen manufacture '*to all the advantage and profit that Ireland should at any time be capable of.*'

"It is to be observed that so anxious was England to confirm and enforce this ratification given by Ireland, that their Parliament soon after passed a law affecting to enact what subsequent times have shown it was incompetent to, and which we therefore here mention merely to point out the stress which England laid on the sacrifice made by Ireland of its great and natural staple trade, in exchange for a new staple resting on a material not the natural growth of the country, and the establishment of which was but in its infancy, though nurtured for near sixty years by the Government of the kingdom. The Act we refer to is the 10 & 11 Will. III., cap. 10, which recites '*that wool and the woollen manufacture of cloth, serge, bays, kerseys, and other stuffs made or mixed with wool, are the greatest and most profitable commodities of the kingdom, on which the value of lands and the trade of the nation do chiefly depend; that great quantities of the like manufactures have of late been made, and are daily increasing in the kingdom of Ireland, and in the English Plantations in America, and are exported from thence to foreign markets heretofore supplied from England: all which inevitably tends to injure the value of lands, and to ruin the trade and woollen manufactures of the realm; and that for the prevention thereof the export of wool and of the woollen manufacture from Ireland be prohibited under the forfeiture of goods and ship, and a penalty of £500 for every such offence.*'"

Ireland's woollen manufacture was thus sacrificed to England's commercial jealousy.^[51] I will give hereafter some account of the widespread misery this industrial calamity entailed. It might have been expected that the solemn compact for the encouragement of the linen trade would have been scrupulously observed. This, however, was not the case. The English Parliament deliberately broke faith with the Irish people. This charge I will substantiate by quotations from the speeches of public men in the English Parliament, the words of the English statute book, and the admissions of English writers.

Lord Rockingham, speaking in the English House of Lords on the 11th of May, 1779, "reminded their lordships of the compact made between both kingdoms in King William's time, when the Parliament of Ireland consented to prohibit the export of their own woollen manufacture, in order to give

that of England a preference, by laying a duty equal to a full prohibition on every species of woollens, or even of the raw commodity, and of the solemn assurances given by both Houses of the British Parliament that they would give every possible encouragement, and abstain from every measure which could prevent the linen manufacture to be rendered the staple of Ireland. But how had England kept its word? By laying duties or granting bounties to the linens of British manufacture equal to a prohibition of the Irish, and at the same time giving every kind of private and public encouragement to render Scotland a real rival to Ireland in almost every species of her linen fabrics."[\[52\]](#)

"Ireland," says Lord North when Prime Minister of England, in the speech from which I have previously quoted, "gave up her woollen trade by compact. The compact was an exclusive linen trade, rather a fair competition with England. Ireland, of her own accord, gave up the woollen trade by an Act of her own Legislature, which, when it expired, was made perpetual by an Act of the British Parliament. But this compact was no sooner made than it was violated by England, for, instead of prohibiting foreign linens, duties were laid on and necessarily collected, so far from amounting to a prohibition on the import of the Dutch, German, and East Country linen manufactures, that those manufactures have been able, after having the duties imposed on them by the British Parliament, to meet, and in some instances to undersell, Ireland both in Great Britain and the West Indies, and several other parts of the British Empire."[\[53\]](#)

Writing in 1778 to the opponents of some trifling relaxation of the commercial restraints of Ireland, Edmund Burke asks: "Do they forget that the whole woollen manufacture of Ireland, the most extensive and profitable of any, and the natural staple of that kingdom, has been in a manner so destroyed by restrictive laws of *their own*, that in a few years it is probable they (the Irish) will not be able to wear a coat of their own fabric? Is this equality? Do gentlemen forget that the understood faith upon which they were persuaded to such an unnatural act has not been kept, and that a linen manufacture has been set up and highly encouraged against them?"[\[54\]](#)

In the year 1750 heavy taxes were laid on the import to England of sail-cloth made of Irish hemp, contrary, of course, to the express stipulation of

1698. An address presented in 1774 to Lord Harcourt, the Viceroy, by the Irish House of Commons thus describes the effect of this measure: "They had been confined by law to the manufacture of flax and hemp. They had submitted to their condition, and had manufactured these articles to such good purpose that at one time they had supplied sails for the whole British navy. Their English rivals had now crippled them by laying a disabling duty on their sail-cloths, in the hope of taking the trade out of their hands, but they had injured Ireland without benefiting themselves. The British market was now supplied from Holland and Germany and Russia, while to the Empire the result was only the ruin of Ulster and the flight of the Protestant population to America."^[55]

I have dwelt thus at length on the chief commercial restraints laid on Ireland by the direct legislation of England. This interference was, however, carried to almost every branch of Irish trade. To take a few examples. Lord North in the English Parliament gives the following account of England's dealings with the Irish glass trade:—

"Previous to the 19th Geo. II., Ireland imported glass from other countries, and at length began to make some slow progress in the lower branches of the manufacture itself. By the Act alluded to, however, the Irish were prohibited from importing any kind of glass other than the manufacture of Great Britain, and in section 24 of that Act a most extraordinary clause was inserted. It not only ordained that no glass, the manufacture of that kingdom, should be exported, but it was penned so curiously, and with so much severe precision, that no glass of the manufacture of Ireland was to be exported, or so much as to be laden on any horse or carriage with intent to be so exported. This was, in his opinion, a very extraordinary stretch of the legislative power of Great Britain, considering the smallness of the object. The Act was much, very much complained of in Ireland, and apparently with very great justice both as to principle and effect. It was an article of general use in Ireland. The manufacturers of glass there, when thus restrained both as to export and import, could not pretend to vie with the British; the consequence of which was that the latter, having the whole trade to themselves, fixed the price of the commodity as they liked."^[56] By the 9 Anne, c. 12, and 5 Geo. II., c. 2, and 7 Geo. II., c. 19, no hops but of British growth could be imported into Ireland. By the 6 Geo. I., it was enacted that

the duty on hops exported from England should not be drawn back in favour of Irish consumers.^[57]

Irish cotton manufactures imported to England were subject to an import duty of twenty-five per cent., while a statute of Geo. I. enacted penalties on the wearing of such manufactures in Great Britain unless they were made there.

The raw material for silk came to Ireland through England. The original import duty in England was 12d. in the pound, of which 3d. in the pound was retained there.^[58]

Irish beer and malt, too, were excluded from England, whereas English beer and malt were imported into Ireland at a nominal duty. "Hats, gunpowder, coals, bar-iron, iron-ware, and several other matters, some of which Ireland had not to export, and others of which she had very little, were at different times the objects of English restrictions, whenever it was fancied that English interests were at all threatened by them."^[59]

It was this legislation that caused Edmund Burke to ask, "Is Ireland united to the Crown of Great Britain for no other purpose than that we should counteract the bounty of Providence in her favour, and in proportion as that bounty has been liberal that we are to regard it as an evil which is to be met with in every sort of corrective?"^[60]

"England," says Mr. Froude, "governed Ireland for what she deemed her own interest, making her calculation on the gross balance of her trade ledgers, and leaving her moral obligations to accumulate, as if right and wrong had been blotted out of the statute book of the universe."^[61]

"One by one of each of our nascent industries," observes Lord Dufferin, "was either strangled in its birth, or handed over gagged and bound to the jealous custody of the rival interest of England, until at last every fountain of wealth was hermetically sealed, and even the traditions of commercial enterprise have perished through desuetude."

This sketch of English legislation for Irish trade would leave the impression that the Parliaments of Great Britain were as lavish in their efforts to suppress industrial enterprise in that country as any British trader could

reasonably desire. It will surprise us to find that this atrocious code was not regarded as sufficiently thorough.

"In the year 1698," says Hely Hutchinson, "two petitions were preferred from Folkestone and Aldborough, stating a singular grievance that they suffered from Ireland 'by the Irish catching herrings at *Waterford and Wexford*, and sending them to the Streights, and thereby *forestalling* and ruining petitioners' markets;' but these petitioners had the *hard lot* of having motions in their favour rejected."^[62]

FOOTNOTES:

^[15] Ireland, however, has natural advantages which must not be forgotten in any estimate of her economical position, and which, although they do not compensate her for the want of coal, would under proper application do much to promote her prosperity. Thus Mr. O'Connell, towards the conclusion of his speech in his own defence, in the State Trials of 1844, says: "The country is intersected with noble estuaries. Ships of 500 tons' burthen ride into the heart of the country, safe from every wind that blows. No country possesses such advantages for commerce; the machinery of the world might be turned by the water-power of Ireland. Take the map and dissect it, and you will find that a good harbour is not more remote from any spot in Ireland than thirty miles." (R. v. O'Connell, p. 649.) Mr. Chaplin, in the speech to which I have referred, remarks: "No doubt Ireland does possess exceptional advantages in water-power which might be turned to great advantage." (Hansard, 261, Third Series, p. 836.) Ireland is not, however, absolutely devoid of coal. "Though," says Mr. C. Dawson, "we make no boast of our mineral treasures, they are, according to competent authority, well worthy of development. According to Professor Hull, the Leinster coal-basin contains 118 million tons, only outputting 83,000 tons per annum. In the North, especially in Tyrone, at Coal Island, there are 17,000 acres of coal-bed (30,000,000 tons), which the Professor says are by far the most valuable in Ireland. In the other districts in Ireland there are over 70,000,000 tons. Sir R. Kane supports the suggestion that borings should be made by the Government in this district to ascertain if the mineral wealth existed to the extent computed by Professor Hull, and he adds that when the panic arose in England about the duration of its coal supply, coal was looked for then outside the limits of the recognised coal-fields, and following them down into the Chalk in Kent and other places, of which Ireland was one." ("The Influence of an Irish Parliament on Irish Industries," Lecture by Mr. Charles Dawson, *Freeman's Journal*, Jan. 5, 1886.)

^[16] "Burke on Irish Affairs," by M. Arnold, p. 101.

^[17] "Commercial Restraints," p. 156. Mr. Secretary Orde, in introducing in the Irish House of Commons, in 1785, the Commercial Propositions, said: "Great Britain was aware of the preferable commercial situation of Ireland." ("Irish Debates," iv., p. 120.)

- [18] "Life and Speeches of Lord Plunket," by the Right Hon. D. Plunket, vol. i., pp. 173, 174.
- [19] "English in Ireland," vol. i., p. 178.
- [20] "Parliamentary Debates," xv., p. 175.
- [21] "Commercial Restraints," p. 164.
- [22] "Irish Debates," iii., p. 123. Henry, Archbishop of Dublin, is mentioned in Magna Charta as one of the barons whose "advice" led to the signing of that instrument by John. This prelate, Henry de Loundres, or "the Londoner," erected St. Patrick's Church, Dublin, into a cathedral, and created the offices of Precentor, Chancellor, Treasurer, and Dean—the last a post destined to be rendered famous five centuries later by the incumbency of Swift. Strange that at far-distant periods of time St. Patrick's Cathedral should be associated with the names of two illustrious assertors of liberty!
- [23] These enactments are mentioned in the "Commercial Restraints," pp. 164-169.
- [24] "Commercial Restraints," p. 169.
- [25] 12 Car. II., c. 18.
- [26] 13 & 14 Car. II., c. 11, s. 6.
- [27] "English in Ireland," i., p. 179.
- [28] "Parliamentary Debates," xv., pp. 175, 176. Edmund Burke, speaking in the British House of Commons, on May 6th, 1778, thus commented on this transaction: "In the 12 Car. II. the Navigation Acts passed, extending to Ireland, as well as England. A kind of left-handed policy, however, had deprived her of the freedom she enjoyed under that Act, and she had ever since remained under the most cruel, oppressive, and unnatural restrictions." ("Parliamentary Debates," viii., p. 265.)
- [29] Except victuals, servants, horses, and salt, for the fisheries of New England and Newfoundland.
- [30] 15 Car. II., c. 7, s. 13.
- [31] 18 Car. II., c. 2.
- [32] 32 Car. II., c. 2. Irish cattle were readmitted into England by the 32 Geo. II., c. 11. This was but a temporary enactment, but it was renewed without difficulty. Hely Hutchinson says it was acknowledged that the importation did not lower English rents. ("Commercial Restraints," p. 86.)
- [33] 22 & 23 Car. II., c. 26.
- [34] "Parliamentary Debates," xv., p. 176.
- [35] "English in Ireland," i. 180.
- [36] Carte's "Ormonde," ii. 357.
- [37] Carte's "Ormonde," ii. 329.
- [38] "Life and Death of the Irish Parliament," p. 69.
- [39] "Irish Commons' Journals," ii. 577.

[40] "Commercial Restraints," p. 20.

[41] "Irish Wool and Woollens," by S. A., p. 67.

[42] "Report from the Select Committee on the Linen Trade of Ireland, 6th June, 1825."

[43] "Life of Thomas Wentworth, Earl of Strafford," by Elizabeth Cooper, i., pp. 185, 186. Miss Cooper comments severely "on the stolid unconsciousness of wrongdoing by such a design, the undreamed-of suspicion that such a proposal could be received with any other feeling than that of approbation." It is but just to the memory of Strafford to state that he endeavoured to develop the linen manufacture in Ireland. He sent to Holland for flax seed, and invited Flemish and French artisans to settle in Ireland. "In order to stimulate the new industry, the earl himself embarked in it, and expended not less than £30,000 of his private fortune in the enterprise. It was afterwards made one of the grounds of his impeachment that he had obstructed the industry of the country by introducing new and unknown processes into the manufacture of flax. It was, nevertheless, greatly to the credit of the earl that he should have endeavoured to improve the industry of Ireland by introducing the superior processes employed by foreign artisans, and had he not attempted to turn the improved flax manufacture to his own advantage by erecting it into a personal monopoly, he might have been entitled to regard as a genuine benefactor of Ireland." (Smiles's "Huguenots," p. 126.) Dr. Smiles, in this passage, speaks of the linen manufacture as a "new industry." The "Report from the Select Committee on the Linen Trade of Ireland" states that that trade was "first planted in Ireland by Lord Strafford" (Appendix, p. 6), and Miss Cooper gives him credit "for the establishment of the linen manufacture in Ireland." ("Life of Lord Strafford," i., p. 346.) These statements are not, I think, historically correct. Mr. Lecky shows that, although Lord Strafford stimulated the linen trade, he did not found it. "The linen manufacture may, indeed, be dimly traced far back into Irish history. It is noticed in an English poem in the early part of the fifteenth century. A century later Guicciardini, in his 'Description of the Low Countries,' mentions coarse linen as among the products imported from Ireland to Antwerp. Strafford had done much to encourage it, and after the calamities of the Cromwellian period the Duke of Ormonde had laboured with some success to revive it." ("England in the Eighteenth Century," ii., pp. 211, 212.) See also, for some very valuable remarks on this subject, "Irish Wool and Woollens," pp. 63, 64.

[44] "Irish Wool and Woollens," p. 70. See also Newenham on "The Population of Ireland," pp. 40, 41.

[45] 12 Car. II., c. 4. A duty equal to a prohibition was laid on those goods.

[46] "English Commons' Journals," xii., p. 338.

[47] "English Commons' Journals," xii. 339.

[48] "Irish Commons' Journals," ii., p. 241.

[49] "Irish Commons' Journals," ii., p. 243.

[50] Irish Statutes, 10 Will. III., c. 3.

[51] Subsequent Acts completed this annihilation. "The next Act," says Lord North, after enumerating the Acts mentioned above, "was an Act of the 5th Geo.

I., the next the 5th and 12th of the late King (Geo. II.), which last went so far as to prohibit the export of a kind of woollen manufacture called waddings, and one or two other articles excepted out of the 10th and 11th of King William; but these three last Acts swept everything before them." ("Parliamentary Debates," xv. 176, 177.)

[52] "Parliamentary Debates," vol. xiii., 330.

[53] "Parliamentary Debates," vol. xv., 181.

[54] "Irish Affairs," pp. 112, 113.

[55] "English in Ireland," vol. ii., p. 177. Mr. Lecky thus succinctly states the particulars attending the breach of the Linen Compact:—"The main industry of Ireland had been deliberately destroyed because it had so prospered that English manufacturers had begun to regard it as a competitor with their own. It is true, indeed, that a promise was made that the linen and hempen manufacture should be encouraged as a compensation, but even if it had been a just principle that a nation should be restricted by force of law to one or two forms of industry, there was no proportion between that which was destroyed and that which was to be favoured, and no real reciprocity established between the two countries." Mr. Lecky having stated the antiquity of the linen manufacture and its vicissitudes in Ireland, and having mentioned that "in 1700 the value of the export of Irish linen amounted to little more than £14,000," thus proceeds:—"The English utterly suppressed the existing woollen manufacture in Ireland in order to reserve that industry entirely to themselves, but the English and Scotch continued, as usual, their manufacture of linen. The Irish trade was ruined in 1699, but no legislative encouragement was given to the Irish linen manufacture till 1705, when, at the urgent petition of the Irish Parliament, the Irish were allowed to export their white and brown linens, but these only to the British colonies, and they were not permitted to bring any colonial goods in return. The Irish linen manufacture was undoubtedly encouraged by bounties, but not until 1743, when the country had sunk into a condition of appalling wretchedness. In spite of the compact of 1698, the hempen manufacture was so discouraged that it positively ceased. Disabling duties were imposed on Irish sail-cloth imported into England. Irish checked, striped, and dyed linens were absolutely excluded from the colonies. They were virtually excluded from England by the imposition of a duty of 30 per cent., and Ireland was not allowed to participate in the bounties granted for the exportation of these descriptions of linen from Great Britain to foreign countries."—"Eighteenth Century," vol. ii., pp. 211-212. See also, "An Argument for Ireland," by J. O'Connell, M.P., pp. 147-154.

[56] "Parliamentary Debates," vol. xv., 179, 180.

[57] "Commercial Restraints," pp. 229, 230.

[58] See "An Argument for Ireland," p. 161.

[59] "An Argument for Ireland," by J. O'Connell, M.P., p. 161.

[60] Burke on "Irish Affairs," p. 101.

[61] "English in Ireland," vol. i., p. 657.

[62] "Commercial Restraints," pp. 125, 126. See "English Commons' Journals," 22, p. 178. In this summary of the laws enacted by the English Parliament in

restraint of Irish trade, I have dealt merely with legislation of a permanent character. "When," says Hely Hutchinson, in 1779, "the commercial restraints of Ireland are the subject, a source of occasional and ruinous restrictions ought not to be passed over. Since the year 1740 there have been twenty-four embargoes in Ireland, one of which lasted three years." "Commercial Restraints," pp. 231, 232. The system of embargoes called forth the indignation of Arthur Young, the celebrated English traveller. The prohibition of woollens, etc., was, he says, at least advantageous to similar manufactures in England, but "in respect to embargoes, even this shallow pretence is wanting; a whole kingdom is sacrificed and plundered, not to enrich England, but three or four London contractors." See also Lecky's "Eighteenth Century," iv., p. 442.

CHAPTER III.

ENGLISH OPPOSITION TO EFFORTS OF THE IRISH PARLIAMENT IN FAVOUR OF IRISH TRADE.

Mr. Fox, speaking in the British House of Commons on the 17th of May, 1782, as a responsible Minister of the Crown, thus stated the nature and effect of the legislation of the English Parliament with reference to Irish trade: "The power of external legislation had been employed against Ireland as an instrument of oppression, to establish an impolitic monopoly in trade, to enrich one country at the expense of the other."^[63] The English Government was, previously to the Revolution of 1782, able to dominate the legislation of the Irish Parliament under the provisions of Poynings' Law. That power was used to induce the Irish Parliament to pass laws prejudicial to the liberties or the commerce of their country, and to prevent the enactment of laws for the protection of Irish liberty, and the development of Irish industrial energies. Thus, when the English Houses of Parliament addressed William III. on the subject of the Irish woollen trade, both Lords and Commons suggested that the King should use his influence to induce the Irish Parliament to restrain that manufacture, without rendering English legislation for the purpose necessary. A few days after these Addresses were presented, the King wrote to Lord Galway, one of the Lords Justices of Ireland, as follows:—

"The chief thing that must be prevented is that the Irish Parliament take no notice of this here, and that you make effectual laws for the linen manufacture, and discourage as far as possible the woollen. It never was of such importance to have a good session of Parliament."^[64]

Ireland was thus, in the words of Mr. Froude, "invited to apply the knife to her own throat."^[65] "The Irish Houses, in dread of abolition if they refused, relying on the promise of encouragement to their linen trade, and otherwise unable to help themselves, acquiesced."^[66] The enactment which they passed was temporary. Hely Hutchinson says that this law has every appearance of being framed on the part of the Administration. The servile

body who assented to it soon had reason to know that to tolerate slavery is to embrace it. The law did not satisfy the English Parliament, who passed the perpetual enactment to which reference has been previously made.^[67] This is, however, one of the few instances in which the Irish Parliament was prevailed on to pass laws in restraint of their own trade. Even in this case the destruction of the woollen industry was not considered complete until English legislation gave it a final blow.

The direct attacks on Irish trade were almost exclusively the work of the English Parliament; while the English Privy Council strangled at its birth every beneficial enactment of the Irish Parliament.

The following instances will explain and illustrate the difficulties with which the Irish Parliament had to contend in every effort to promote the material prosperity of their country:—

"With," says Mr. Froude, "their shipping destroyed by the Navigation Act, their woollen manufactures taken from them, their trade in all its branches crippled and confined, the single resource left to those of the Irish who still nourished dreams of improving their unfortunate country was agriculture. The soil was at least their own, which needed only to be drained, cleared of weeds, and manured to produce grass crops and corn crops as rich as the best in England. Here was employment for a population three times more numerous than as yet existed. Here was a prospect, if not of commercial wealth, yet of substantial comfort and material abundance."^[68]

After some further observations, Mr. Froude thus proceeds:—"The tenants were forbidden in their leases to break or plough the soil. The people no longer employed were driven away into holes and corners, and eked out a wretched subsistence by potato gardens or by keeping starving cattle of their own on the neglected bogs. Their numbers increased, for they married early, and they were no longer liable, as in the old times, to be killed off like dogs in forays. They grew up in compulsory idleness, encouraged once more in their inherited dislike of labour,^[69] and inured to wretchedness and hunger; and on every failure of the potato crop, hundreds of thousands were starving. Of corn very little was grown anywhere in Ireland. It was imported from England, Holland, Italy, and France, but in quantities unequal to any sudden demand. The disgrace of allowing a nation of human beings to subsist upon such conditions forced itself at last on the conscience

of the Irish Parliament, and though composed of landowners who were tempted as much as others to let their farms on the terms most profitable to them, the House of Commons in 1716 resolved unanimously to make an effort for a general change of system, and to reclaim both people and country by bringing back and stimulating agriculture. They passed a vote that covenants which prohibited the breaking soil with the plough were impolitic, and should have no binding force. They passed heads of a bill, which they recommended with the utmost earnestness to the consideration of the English Council, enjoining that for every hundred acres which any tenant held he should break up and cultivate five, and, as a further encouragement, that a trifling bounty should be granted by the Government on corn grown for exportation.

"And what did England answer? England which was so wisely anxious for the prosperity of the Protestant interest in Ireland: England which was struggling so pathetically to make the Irish peers and gentlemen understand the things that belonged to their peace? The bounty system might or might not have been well calculated to produce the effect which Ireland desired. It was the system which England herself practised with every industry which she wished to encourage, and it was not on economic grounds that the Privy Council rejected a Bill which they ought rather to have thrust of their own accord on Irish acceptance. The real motive was probably the same which had led to the suppression of the manufactures—the detestable opinion that to govern Ireland conveniently Ireland must be kept weak. Although the corn consumed in Ireland had been for many years imported, the English farmers were haunted with a terror of being undersold in their own and foreign markets by a country where labour was cheap. A motive so iniquitous could not be confessed, but the objections which the Council were not ashamed to allege were scarcely less disgraceful to them. The English manufacturers having secured, as they supposed, the monopoly of Irish wool on their own terms, conceived that the whole soil of Ireland ought to be devoted to growing it. The merchants of Tiverton and Bideford had recently memorialised the Crown on the diminution of the number of fleeces which reached them from the Irish ports. They attributed the falling off to the contraband trade between Ireland and France, which shortened their supplies, enhanced the price, and gave the French weavers an advantage over them. Their conjecture, as will be hereafter shown, was perfectly just. The contraband trade, as had been foreseen when the

restrictions were imposed, had become enormous. But the Commissioners of the Irish Revenue were unwilling to confess to carelessness. They pretended that the Irish farmers, forgetting their obligations to England, and thinking wickedly only of their own interests, were diminishing their stock of sheep, breaking up the soil, and growing wheat and barley. The allegation, unhappily, was utterly untrue. But the mere rumour of a rise of industry in Ireland created a panic in the commercial circles of England. Although the change existed as yet only in desire, and the sheep-farming, with its attending miseries, was increasing rather than diminishing, Stanhope, Walpole, Sutherland, and the other advisers of the English Crown, met the overtures of the Irish Parliament in a spirit of settled hostility, and, with an infatuation which now appears insanity, determined to keep closed the one remaining avenue by which Ireland could have recovered a gleam of prosperity.

"The heads of the Bill were carried in Ireland without a serious suspicion that it would be received unfavourably. A few scornful members dared to say that England would consent to nothing which would really benefit Ireland, but they were indignantly silenced by the friends of the Government. It was sent over by the Duke of Grafton, with the fullest expectation that it would be returned. He learnt first with great surprise that 'the Tillage Bill was meeting with difficulties.' 'It was a measure,' he said, 'which the gentlemen of the country had very much at heart, as the only way left them to improve their estates while they were under such hard restrictions in point of trade.' 'It would be unkind,' he urged, in a second and more pressing letter, 'to refuse Ireland anything not unreasonable in itself. He conceived the Corn Bill was not of that nature, and therefore earnestly requested his Majesty would be pleased to indulge them in it.'

"Stanhope forwarded in answer a report of the English Commissioners of Customs, which had the merit of partial candour. 'Corn,' they said, 'is supposed to be at so low a rate in Ireland in comparison with England, that an encouragement to the exportation of it would prejudice the English trade.'

"The Lords Justices returned the conclusive rejoinder that for some years past Ireland had imported large quantities of corn from England, which would have been impossible had her own corn been cheaper. 'They could not help representing,' they said, 'the concern they were under to find that

verified which those all along foretold who obstructed the King's affairs, and which his friends had constantly denied, that all the marks they had given of duty and affection would not procure one bill for the benefit of the nation.'

"The fact of the importation of corn from England could not be evaded; but the commercial leaders were possessed with a terror of Irish rivalry which could not be exorcised. The bill was at last transmitted, but a clause had been slipped in empowering the Council to suspend the premiums at their pleasure; and the House of Commons in disgust refused to take back a measure which had been mutilated into a mockery."^[70]

To take another instance, illustrative of the same system, which was in full operation sixty years later. The heads of a bill were introduced in 1771 to prevent corn from being wasted in making whisky, and to put some restraint on the vice of drunkenness, which was increasing. This bill was warmly recommended to the English Privy Council by Townshend, the Lord-Lieutenant of the day, who said, "the whisky shops were ruining the peasantry and the workmen. There was an earnest and general desire to limit them. It will be a loss to the revenue, but it is a very popular bill, and will give general content and satisfaction throughout the kingdom."^[71] "The Whisky Bill," says Mr. Froude, "was rejected because the Treasury could not spare a few thousand pounds which were levied upon drunkenness."^[72]

It must also be borne in mind that although the English Parliament could, and, in fact, did, place prohibitory duties on Irish goods imported into England, it was quite impossible for the Irish Parliament to exercise the same power. Bills of such a nature would, of course, never obtain the sanction of the English Privy Council, to whom they must have been submitted.

The difference between the duties on the same goods when imported from England into Ireland, and from Ireland into England, were in some cases striking. "In Ireland," says Mr. Parsons, speaking in the Irish Parliament in 1784, "no more than 6d. a yard was imposed on the importation of English cloths, while ours in England were charged with a duty of £2 0s. 6d."^[73]

Mr. Pitt, speaking as Prime Minister in the British House of Commons in February, 1785, stated that on most of the manufactures of Ireland

prohibitory duties were laid by Great Britain. "They (the Irish) had not," he said, "admitted our commodities totally free from duties; they bore, upon an average, about ten per cent."^[74]

The helplessness of the Irish Parliament during this period is demonstrated by Hely Hutchinson. He states that in 1721, during a period of great distress, the speech from the Throne, and the Addresses to the King and the Lord-Lieutenant declare in the strongest terms the great decay of trade, and the very low and impoverished state to which the country was reduced. "But," he says, "it is a melancholy proof of the desponding state of this kingdom, that no law whatever was then proposed for encouraging trade or manufactures, or, to follow the words of the address, for reviving trade or making us a flourishing people, unless that for amending laws as to butter and tallow casks deserves to be so called. And why? Because it was well understood by both Houses of Parliament that they had no power to remove those restraints which prohibited trade and discouraged manufactures, and that any application for that purpose would at that time have only offended the people on one side of the Channel, without bringing any relief to those on the other."^[75]

The Irish Parliament did, however, what they could. Thus, "in the sessions of 1703, 1705, and 1707, the House of Commons resolved unanimously that it would greatly conduce to the relief of the poor and the good of the kingdom, that the inhabitants thereof should use none other but the manufactures of this kingdom in their apparel, and the furniture of their houses; and in the last of those sessions, the members engaged their honours to each other that they would conform to the said resolution."^[76] Many of their suggestions for the encouragement of home produce are of extraordinary ingenuity. In 1727, the Privy Council allowed a bill to become law, entitled "An Act to encourage the home consumption of wool by burying in wool only," providing that no person should be buried "in any stuff or thing other than what is made of sheep or lambs' wool only."^[77] The custom, now grotesque and unmeaning, but still in vogue in Ireland, of wearing scarfs at funerals, was recommended in the interest of the linen manufacture, and was first introduced in 1729 at the funeral of Mr. Conolly, Speaker of the Irish House of Commons.^[78] So, too, spinning schools were established in every county, and a board of trustees was appointed to watch over the interests of the linen manufacture; "but the utter want of capital,

the neglect of the grand juries, the ignorance, poverty, and degradation of the inhabitants, made the attempt to create a new manufacture hopeless."^[79]

These efforts of the Irish Parliament, though of little practical effect, demonstrate their keen appreciation of the sufferings around them and their sympathy with the wants and wishes of their people, who were crushed by a system which Mr. Pitt has characterised as one "of cruel and abominable restraint."^[80]

Speaking in the English House of Commons in 1785, that statesman bade members "recollect that from the Revolution to a period within the memory of every man who heard him, indeed until these very few years, the system had been that of debarring Ireland from the enjoyment and use of her own resources, to make that kingdom completely subservient to the interests and opulence of this country, without suffering her to share in the bounties of nature, in the industries of her citizens, or making them contribute to the general interests and strength of the empire."^[81]

"No country," says Mr. Lecky, "ever exercised a more complete control over the destinies of another than did England over those of Ireland, for three-quarters of a century after the Revolution. No serious resistance of any kind was attempted. The nation was as passive as clay in the hands of the potter, and it is a circumstance of peculiar aggravation that a large part of the legislation I have recounted was a distinct violation of a solemn treaty."^[82] The commercial legislation which ruined Irish industry, the confiscation of Irish land which demoralised and impoverished the nation, were all directly due to the English Government, and the English Parliament."^[83]

"If," says Mr. Froude, "the high persons at the head of the great British Empire had deliberately considered by what means they could condemn Ireland to remain the scandal of their rule, they could have chosen no measures better suited to their end than those which they pursued unrelentingly through three-quarters of a century."^[84]

FOOTNOTES:

^[63] "Parliamentary Register," p. 7.

[64] Rapin, xvii., p. 417. The date of this letter is 16th of July, 1698. The matter was so urgent that William III. wrote two letters. See "English in Ireland," i. 297.

[65] "English in Ireland," vol. i., p. 297.

[66] *Ibid.*, p. 297.

[67] 10 & 11 Will. III., c. 10.

[68] "English in Ireland," vol. i., p. 439.

[69] The charge of indolence which Mr. Froude has here preferred against the Irish peasantry has frequently been refuted. The accusation is an old one. Speaking in the Irish House of Commons in 1784, the Right Hon. Luke Gardiner thus repelled it:—"Those who render our people idle are the first to ridicule them for that idleness, and to ridicule them without a cause. National characteristics are always unjust, as there never was a country that has not produced both good and bad." "They are general assertions, as false as they are illiberal. Irishmen have shown spirit and genius in whatever they have undertaken." "I call upon gentlemen to specify one instance where the people were indolent when the laws of their country protected them in their endeavours." ("Irish Debates," iii., p. 127.) "It is a cant in England," says Mr. O'Connell, "that they (the Irish) are an idle people, but how can that be said when they are to be found seeking employment through every part of the world? They are to be found making roads in Scotland and digging canals in the poisonous marshes of New Orleans." ("Discussion in Dublin Corporation on Repeal of the Union," in 1843, p. 58) The *Times* of the 26th of June, 1845, in an article to which I will refer hereafter, says "The Irishman is disposed to work."

[70] "English in Ireland," vol. i., 441-446. The subsequent history of this Bill as related by Mr. Froude is interesting. It became law in 1727, but was practically ineffective. See Lecky's "Eighteenth Century," ii., 248.

[71] "English in Ireland," vol. ii., 113, 114.

[72] "English in Ireland," vol. ii., 114.

[73] "Irish Debates," vol. iii., 132.

[74] "Parliamentary Register," 17, 255.

[75] "Commercial Restraints," pp. 40-41. Speaking of the great distress in the years 1740 and 1741, Hely Hutchinson again deplores the inability of the Irish Parliament to alleviate the misery of the poor. "They (the Commons) could not have been insensible of the miseries of their fellow-creatures, many thousands of whom were lost in those years, some from absolute want and many from disorders occasioned by bad provisions. Why was no attempt made for their relief? Because the Commons knew that the evil was out of their reach, and the poor were not employed because they were discouraged by restrictive laws from working up the materials of their own country, and that agriculture could not be encouraged when the lower classes of the people were not enabled by their industry to purchase the produce of the farmer's labour."—"Commercial Restraints," pp. 47-48.)

[76] "Commercial Restraints," pp. 210, 211.

[77] 7 George II. (Irish) c. 13. This Irish Statute was framed on the model of an Act passed by the English Parliament in 1678, providing that all dead bodies should be wrapped in woollen shrouds. Dean Swift warmly approved of this measure which, however, he seemed to think would never pass the Privy Councils. "What," he says, "if we should agree to make burying in woollen a fashion, as our neighbours have made it a law?" Swift's Works (Scott's Ed.), vi., p. 274.

[78] Finlayson's "Monumental Inscriptions in Christ Church Cathedral, Dublin," p. 27.

[79] Lecky's "Eighteenth Century," vol. ii., 215.

[80] "Parliamentary Register," 17, 249. Mr. Lecky pays a high compliment to the exertions of the Irish Parliament to protect the material interests of their country. "During the greater part of the century (18th century) it had little power except that of protesting against laws crushing Irish commerce, but what little it could do it appears to have done."—"Leaders of Public Opinion in Ireland," p. 187.

[81] "Parliamentary Register," 17, 249.

[82] Mr. Lecky refers doubtless to the Treaty of Limerick.

[83] "Eighteenth Century," vol. ii., 256.

[84] "English in Ireland," vol. ii., 213.

CHAPTER IV.

THE IMMEDIATE EFFECTS OF ENGLISH LEGISLATION ON IRISH TRADE.

The immediate effects produced upon Ireland by the commercial policy of Great Britain were such as might reasonably be anticipated from the brief and necessarily imperfect account I have given of that system. The best and most energetic members of the industrial community sought refuge in exile from a land where honest labour was robbed by law of its reward. The weaker ones, who were compelled to remain, this terrible system defrauded, impoverished, and degraded. It afflicted every Irishman, whether at home or abroad, with a sense of intolerable wrong, and created that passionate resentment towards England, which has been transmitted to succeeding generations. "One of the most obvious consequences," says Mr. Lecky, "was that for the space of about a century Ireland underwent a steady process of depletion, most men of energy, ambition, talent, or character being driven from her shores."^[85] "If the ambition of an Irishman lay in the paths of manufacture and commerce he was almost compelled to emigrate, for industrial and commercial enterprise had been deliberately crushed."^[86] This legislation, it must be remembered, fell most severely on the Protestant population of Ireland, although, of course, it grievously affected every class, and, indeed, every member of the community. Twenty thousand Puritans left Ulster on the destruction of the woollen trade.^[87] "Until the spell of tyranny was broken, in 1782, annual ship-loads of families poured themselves out from Belfast and Londonderry. The resentment they carried with them continued to burn in their new homes; and, in the War of Independence, England had no fiercer enemies than the great-grandsons of the Presbyterians who had held Ulster against Tyrconnel."^[88]

At the beginning of the eighteenth century, Mr. Lecky thinks the population of Ireland slightly exceeded two millions,^[89] and he adopts the calculation of a contemporary writer that the woollen manufacture at the time of its suppression afforded employment to 12,000 Protestant families in the

metropolis, and 30,000 dispersed over the rest of the kingdom.^[90] We can, therefore, see at a glance how large a fraction of the entire population of the country were directly deprived of bread by that measure. Swift, whose deanery lay in the liberties of Dublin, the principal seat of the woollen manufacture, and who witnessed the results of its suppression, thus writes:—"Three parts in four of the inhabitants of that district of the town where I dwell were English manufacturers, whom either misfortunes in trade, little petty debts contracted through illness, or the presence of a numerous family, had driven into our cheap country. These were employed in working up our worse wool, while the finest was sent into England. Several of these had taken the children of the native Irish apprentices to them who, being humbled by the forfeiture of upwards of three millions by the Revolution, were obliged to stoop to a mechanic industry. Upon the passing of this bill, we were obliged to dismiss thousands of these people from our service. Those who had settled their affairs returned home, and overstocked England with workmen; those whose debts were unsatisfied, went to France, Spain, and the Netherlands, where they met with good encouragement, whereby the natives having got a firm footing in the trade, being acute fellows, so became as good workmen as any we have, and supply the foreign manufacturers with a constant supply of artisans."^[91]

"Upon the checking the export of our woollen manufactures," writes Mr. Arthur Dobbs, in 1729, "and by laying on heavy duties on its being exported to England in 1699 and 1700, equivalent to a prohibition, most of those who were embarked in it were laid under a necessity of removing elsewhere; and, being piqued at the difficulties they were laid under, many of the Protestants removed into Germany, and settled in the Protestant states there, who received them with open arms. Several Papists at the same time removed into the northern parts of Spain, where they laid the foundations of a manufacture highly prejudicial to England. Many also of the Protestants who were embarked with Papists in the woollen manufacture, removed into France, and settled at Roan and other parts. Notwithstanding Louis XIV. had repealed the Edict of Nantes, and forced abroad the French Protestants into different parts of Europe, yet these were kindly received by him, had great encouragement given to them, and were protected in their religion. From these beginnings they have in many branches so much improved the woollen manufactures of France, as not only to supply themselves, but even

to vie with the English in the foreign markets; and by their correspondence they have laid the foundation for the running of wool thither both from England and Ireland, highly to the prejudice of Britain, which pernicious practice is still carried on in spite of all the care and precaution made use of to discountenance and prevent it. Thus a check is put upon the sale of our woollen manufactures abroad, which would have given employment to all the industrious poor both of Britain and Ireland, had not our manufacturers been forced away into France, Spain, and Germany, where they are now so improved as in great measure to supply themselves with many sorts they formerly had from England."^[92]

In 1773 the Irish House of Commons "had to hear from the Linen Board that 'many thousands of the best manufacturers and weavers, with their families, had gone to seek their bread in America, and thousands were preparing to follow.' Again a committee was appointed to inquire. This time the blame was laid on England, which had broken the linen compact, given bounties to Lancashire mill-owners, which Belfast was not allowed to share, and in 'jealousy of Irish manufactures,' had laid duties on Irish sail-cloth contrary to express stipulation. The accusation, as the reader knows, was true."^[93] "If," wrote Mr. Newenham, in 1805, "we said that, during fifty years of the last century, the average annual emigration to America and the West Indies amounted to 4,000, and consequently that in that space of time 200,000 had emigrated to the British Plantations, I am disposed to think we should rather fall short of than exceed the truth."^[94]

It would be easy to adduce further evidence of the extent of this emigration caused by the destruction of Irish manufactures and its results. The speech, however, of the Right Hon. Luke Gardiner, delivered in the Irish House of Commons on the 2nd of April, 1784, is noteworthy. Having described the destruction of the woollen trade, which was initiated by the Irish Act laying it under temporary prohibitions, passed by "a corrupt majority in this House;" the consequent emigration of the manufacturers, their favourable reception in foreign countries, and especially in France, who, availing herself of their industry, was enabled, not only "to rival Great Britain, but to undersell her in every market in Europe," the speaker proceeded thus—

"England, from unhappy experience, is convinced of the pernicious effects of her impolicy. The emigration of the Irish manufacturers in the reign of

King William is not the only instance that has taught that nation the ruinous effects of restrictive laws. Our own remembrance has furnished a sad instance of the truth of this assertion—furnished it in the American war. America was lost by Irish emigrants. These emigrations are fresh in the recollection of every gentleman in this House; and when the unhappy differences took place, I am assured, from the best authority, that the major part of the American army was composed of Irish, and that the Irish language was as commonly spoken in the American ranks as English. I am also informed it was their valour determined the conquest; so that England not only lost a principal protection of her woollen trade, but also had America detached from her by force of Irish emigrants."^[95]

The weaker and more defenceless members of the Irish industrial community were forced by circumstances to remain at home, and were accordingly exposed to the sufferings entailed by this policy of unenlightened selfishness and exasperation.

The following extracts, taken from a mass of contemporaneous documents, will give some idea of their condition.

"From the time," says Hely Hutchinson, "of this prohibition [of the woollen manufactures] no Parliament was held in Ireland till the year 1703. Five years were suffered to elapse before any opportunity was given to apply a remedy to the many evils which such a prohibition must necessarily have occasioned. The linen trade was then not thoroughly established in Ireland; the woollen manufacture was the staple trade, and wool the principal material of that kingdom. The consequences of the prohibition appear in the session of 1713. The Commons lay before Queen Anne a most affecting representation containing, to use their own words, 'a true state of our deplorable condition,' protesting that no groundless discontent was the motive for that application, but a deep sense of the evil state of their country, and of the further mischiefs they have reason to fear will fall upon it if not timely prevented. They set forth the vast decay and loss of its trade, its being almost exhausted of coin that they are hindered from earning their livelihoods, and from maintaining their own manufactures; that their poor have thereby become very numerous; that great numbers of Protestant families have been constrained to remove out of the kingdom, as well into Scotland as into the dominions of foreign princes and states; and that their foreign trade and its returns are under such restrictions and discouragements

as to be then become in a manner impracticable, although that kingdom had by its blood and treasure contributed to secure the plantation trade to the people of England.

"In a further Address to the Queen, laid before the Duke of Ormonde, then Lord-Lieutenant, by the House, with its Speaker, they mention the distressed condition of that kingdom, and more especially of the industrious Protestants, by the almost total loss of trade and decay of their manufactures, and, to preserve the country from utter ruin, apply for liberty to export their linen manufactures to the Plantations.

"In a subsequent part of this session the Commons resolve that, by reason of the great decay of trade and discouragement of the manufactures of this kingdom, many poor tradesmen were reduced to extreme want and beggary. This resolution was agreed to *nem. con.*, and the Speaker, Mr. Broderick, then his Majesty's Solicitor-General, and afterwards Lord Chancellor, in his speech at the end of the session, informs the Lord-Lieutenant that 'the representation of the Commons was, as to the matters contained in it, the unanimous voice and consent of a very full House, and that the soft and gentle tones used by the Commons in laying the distressed condition of the kingdom before his Majesty, showed that their complaints proceeded not from querulousness, but from a necessity of seeking redress.'" ^[96]

In his proposal for the use of Irish manufactures, which was published in 1720, Dean Swift says: "The Scripture tells us that oppression makes a wise man mad, therefore, consequently speaking, the reason why some men are not mad is because they are not wise. However, it were to be wished that oppression would in time teach a little wisdom to fools." ^[97] "Whoever travels in this country and observes the face of nature, and the faces and habits and dwellings of the natives, will hardly think himself in a land where law, religion, or common humanity is professed." ^[98] Nicholson, an Englishman, translated from the Bishopric of Carlisle to that of Derry, in a letter to the Archbishop of Canterbury, written in the same year, gives a similar account of the prevailing destitution: "Never did I behold in Picardy, Westphalia, and Scotland, such dismal marks of hunger and want as appeared in the countenances of most of the poor creatures I met with on the road." He states that one of his carriage horses having been killed by accident, it was surrounded by "fifty or sixty famished cottagers, struggling

desperately to obtain a morsel of flesh for themselves and their children."^[99] Swift, writing in 1727, says: "The conveniency of ports and harbours, which nature has bestowed so liberally on this country, is of no more use to us than a beautiful prospect to a man shut up in a dungeon."^[100] "Ireland is the only kingdom I ever heard of, either in ancient or modern story, which was denied the liberty of exporting their native commodities and manufactures wherever they pleased, except to countries at war with their own Prince or State; yet this privilege, by the mere superiority of power, is refused us in the most momentous parts of our commerce; besides an Act of Navigation, to which we never consented, pinned down upon us, rigorously executed, and a thousand other unexampled circumstances, as grievous as they are invidious to mention."^[101] "If we do flourish it must be against every law of nature and reason, like the thorn of Glastonbury, that blossoms in the midst of the winter."^[102] "The miserable dress, diet, and dwelling of the people, the general desolation in most parts of the kingdom, the old seats of the nobility in ruins, and no new ones in their stead, the families of farmers, who pay great rents, living in filth and nastiness, upon butter-milk and potatoes, without a shoe or stocking to their feet, or a house so convenient as an English hogsty to receive them. These, indeed, may be comfortable sights to an English spectator, who comes for a short time only to learn the language, and returns back to his own country whence he finds all his wealth transmitted.

"Nostra miseria magna est.

There is not one argument used to prove the riches of Ireland which is not a logical demonstration of its poverty."^[103] "Ireland is the poorest of all civilised countries, with every advantage to make it one of the richest."^[104]

"The great scarcity of corn," says Hely Hutchinson, "had been so universal in this kingdom in the years 1728 and 1729 as to expose thousands of families to the utmost necessities, and even to the danger of famine, many artificers and housekeepers having been obliged to beg for bread in the streets of Dublin."^[105] This is probably the distress to which Swift, writing in 1729, alludes: "Our present calamities are not to be represented. You can have no notion of them without beholding them. Numbers of miserable objects crowd our doors, begging us to take their wares at any price to prevent their families from immediate starving."^[106]

"In twenty years," says Mr. Lecky, "there were at least three or four of absolute famine."^[107]

The writer of a pamphlet entitled "The Groans of Ireland in a Letter to a Member of Parliament," published in Dublin in 1741, thus begins:—

"I have been absent from this country for some years, and on my return to it last summer found it the most miserable scene of universal distress that I ever read of in history.

"Want and misery in every face, the rich unable, almost as they were unwilling, to relieve the poor; the roads spread with dead and dying bodies; mankind of the colour of the docks and nettles which they fed on; two or three, sometimes more, on a car going to the grave for want of bearers, to carry them, and many buried only in the fields and ditches where they perished. This universal scarcity was ensued by malignant fevers, which swept off multitudes of all sorts; whole villages were laid waste by want and sickness and death in various shapes, and scarce a house in the whole island escaped from tears and mourning.

"It were to be wished, Sir, that some curious enquirer had made a calculation of the numbers lost in this terrible calamity. If one for every house in the kingdom died (and that is very probable, when we consider that whole families and villages were swept off in many parts together), the loss must have been upwards of 400,000 souls. If but one for every other house (and it was certainly more), 200,000 perished—a loss too great for this ill-peopled country to bear and the more grievous as the loss was mostly of the grown-up part of the working people."

The writer then proceeds to emphasise the fact to which Swift had previously directed attention: that Irish famines are *artificial*.

"Sir,—When a stranger travels through this country and beholds its wide extended and fertile plains, its great flocks of sheep and black cattle, and all its natural wealth and conveniences for tillage, manufactures, and trade, he must be astonished that such misery and want could possibly be felt by its inhabitants; but you, who know the Constitution and are acquainted with its weaknesses, can easily see the reason."^[108]

Writing in the year 1779, Hely Hutchinson says, "In this and the last year about twenty thousand manufacturers in this metropolis were reduced to

beggary for want of employment; they were for a considerable length of time supported by alms; a part of the contribution came from England, and this assistance was much wanting, from the general distress of all ranks of people in this country. Public and private credit are annihilated."^[109] Again, "A country will sooner recover from the miseries and devastation occasioned by war, invasion, rebellion, and massacre, than from laws restraining the commerce, discouraging the manufactures, fettering the industry, and, above all, breaking the spirits of the people."^[110] He thus summarises the effects of the eighty years' restrictive legislation, between the destruction of the woollen trade in 1699 and 1779, the date at which he was writing. "Can the history of any other fruitful country on the globe, enjoying peace for fourscore years, and not visited by plague or pestilence, produce so many recorded instances of the poverty and wretchedness, and of the reiterated want and misery of the lower orders of the people? There is no such example in ancient or modern story. If the ineffectual endeavours by the representatives of those poor people to give them employment or food had not left sufficient memorials of their wretchedness, if their habitations, apparel, and food were not sufficient proofs, I should appeal to the human countenance for my voucher, and rest the evidence on that hopeless despondency that hangs on the brow of unemployed industry."^[111]

Such were the more striking effects of this pernicious legislation. Its remoter consequences were likewise disastrous. Crime and outrage were promoted by the suppression of national industry. "In the year 1762," says Hely Hutchinson, "a new evil made its appearance, which all the exertions of the Government and of the Legislature have not since been able to eradicate. I mean the risings of the White Boys. They appear in those parts of the kingdom where manufactures are not established, and are a proof of the poverty and want of employment of the lower classes of our people."^[112] Then again, this system divorced law from public opinion. Sir Henry Maine has well observed, that social necessities and social opinion are always more or less in advance of law, and that the greater or less happiness of a nation depends on the degree of promptitude with which the gulf between them is narrowed.^[113] In Ireland that gulf was deliberately widened; and the people learned, with good reason, to regard the law, not as a protector, but as a plunderer of their rightful gains, and as an agency to make havoc of their industry. "When England," says Mr. Froude, "in

defence of her monopolies, thought proper to lay restrictions on the Irish woollen trade, it was foretold that the inevitable result would be an enormous development of smuggling."^[114] "The entire nation, high and low, was enlisted in an organised confederacy against the law. Distinctions of creed were obliterated, and resistance to law became a bond of union between Catholic and Protestant, Irish Celt and English colonist."^[115] Hely Hutchinson, in a paper laid before Lord Buckinghamshire, in July, 1779, places this matter in a clear light. "You have forced us into an illicit commerce, and our very existence depends now upon it. Ireland has paid Great Britain for eleven years past double the sum that she collects from the whole world in all the trade which Great Britain allows her, a fact not to be paralleled in the history of the world. Whence did the money come? But one answer is possible. It came from the contraband trade, and surely it is madness to suffer an important part of the empire to continue in that condition. You defeat your own objects."^[116]

Again, this system embittered the relations between landlord and tenant in Ireland by raising unduly the creation of farms, the cultivation of the soil being the only industrial resource left to the people. "Rents," says Mr. Lecky, "were regulated by competition; but it was competition between a half starving population, who had no other resource except the soil, and were prepared to promise anything rather than be deprived of it."^[117] The mass of the people," the same writer continues, "became cottiers, because it was impossible to gain a livelihood as agricultural labourers or in mechanical pursuits. This impossibility was due to the extreme paucity of circulating capital, and may be chiefly traced to the destruction of Irish manufactures and to the absence of a considerable class of resident landlords, who would naturally give employment to the poor."^[118]

Such were some of the more immediate effects upon Ireland of the commercial arrangements of Great Britain. That system was thus described in the Irish House of Commons in October, 1779, by Hussey Burgh, who then held the office of Prime Serjeant, and afterwards became Lord Chief Baron of the Court of Exchequer. "The usurped authority of a foreign Parliament has kept up the most wicked laws that a jealous, monopolising, ungrateful spirit could desire, to restrain the bounty of Providence and enslave a nation whose inhabitants are recorded to be a brave, loyal, generous people; by the English code of laws, to answer the most sordid

views, they have been treated with a savage cruelty; the words penalty, punishment, and Ireland are synonymous; they are marked in blood on the margin of their statutes, and though time may have softened the calamities of the nation, the baneful and destructive influence of those laws have borne her down to a state of Egyptian bondage. The English have sowed their laws like serpents' teeth; they have sprung up as armed men."^[119]

Few will be disposed to disagree with Mr. Froude in his estimate of the effects of this policy. "By a curious combination this system worked the extremity of mischief, commercially, socially, and politically."^[120]

FOOTNOTES:

^[85] "Eighteenth Century," vol. ii., 257, 258.

^[86] "Eighteenth Century," vol. ii., 259.

^[87] "English in Ireland," vol. i., 435.

^[88] "English in Ireland," vol. i., 436.

^[89] "Eighteenth Century," vol. ii., 255.

^[90] "Eighteenth Century," vol. ii., 213.

^[91] Swift's Works (Scott's Ed.), vol. vii., 195.

^[92] "An Essay upon the Trade of Ireland"—"Tracts and Treatises" (Ireland), 2, p. 335-6.

^[93] "English in Ireland," vol. ii., 137.

^[94] Newenham on "Population," p. 60. This remark is quoted by Mr. Lecky.

^[95] "Irish Debates," vol. iii., 130.

^[96] "Commercial Restraints," pp. 24-27.

^[97] Swift's Works (Scott's Edition), vol. vi., p. 277.

^[98] Swift's Works (Scott's Edition), vol. vi., 281, 282.

^[99] "England in the Eighteenth Century," vol. ii., 216.

^[100] Swift's Works (Scott's Edition), vol. vii., p. 115.

^[101] *Ibid.*, pp. 115, 116.

^[102] *Ibid.*, p. 118.

^[103] Swift's Works (Scott's Edition), vol. vii., pp. 118, 119.

^[104] *Ibid.*, p. 135.

^[105] "Commercial Restraints," p. 44.

^[106] Swift's Works (Scott's Edition), vol. vii., p. 199.

[107] "Eighteenth Century," vol. ii., p. 218.

[108] The resemblance between this account of the famine of 1740 and the account of the condition of Ireland in the June preceding the last Irish Famine, as given by the *Times*, is striking. In an article of the 26th June, 1845, that paper says—"The facts of Irish destitution are ridiculously simple. They are almost too commonplace to be told. The people have not enough to eat. They are suffering a real, though an artificial, famine. Nature does her duty. The land is fruitful enough. Nor can it be fairly said that man is wanting. The Irishman is disposed to work. In fact, man and Nature together do produce abundantly. The island is full and overflowing with human food. But something ever interposes between the hungry mouth and the ample banquet. The famished victim of a mysterious sentence stretches out his hand to the viands which his own industry has placed before his eyes, but no sooner are they touched than they fly. A perpetual decree of *sic vos non nobis* condemns him to toil without enjoyment. Social atrophy drains off the vital juices of the nation." Mr. Lecky quotes from "The Groans of Ireland," a copy of which he found in the Halliday Collection of Pamphlets in the Irish Academy ("Eighteenth Century," vol. ii., p. 218). My attention was attracted by the reference, and, on inquiry, I ascertained that there were several copies of this pamphlet in the Library of the King's Inns.

[109] "Commercial Restraints," p. 3.

[110] *Ibid.*, pp. 31, 32.

[111] "Commercial Restraints," pp. 78, 79.

[112] *Ibid.*, p. 69.

[113] "Ancient Law," p. 24.

[114] "English in Ireland," vol. i., p. 497.

[115] *Ibid.*, p. 500.

[116] *Ibid.*, vol. ii., p. 247.

[117] "Eighteenth Century," vol. ii., p. 241.

[118] *Ibid.*, p. 243.

[119] "MacNevin's Volunteers," p. 117. Mr. Froude well observes that these memorable words "had nothing to do with penal laws, and related entirely to the restrictions on trade." "English in Ireland," vol. ii., p. 264.

[120] "English in Ireland," vol. i., p. 502. In these pages I have designedly refrained from referring to the Penal Code. I have confined myself entirely to a recital of the leading features of the restrictions imposed by England on Irish trade. It is, in my opinion, impossible to estimate, in distinct scales, the evils done by these terrible agencies. They acted and re-acted on each other, and affected not merely the special objects of legislation, but more or less directly every interest in the community. The able writer of a pamphlet, "Irish Wool and Woollens," to which I have frequently referred, says:—"Possibly the laws that annihilated the wool trade wrought more destruction than the legislation that aimed at stamping out the Catholic faith, for the trade Acts snatched bread from the mouth, filched hope from the heart, and wrenched power from the hands of the industrial sections of the community." (p. 43.) From this opinion I am

constrained to differ. Speaking as a Protestant, I have no hesitation in saying that the injuries inflicted on Ireland by the Penal Code exceeded the injuries inflicted on her by the trade regulations. "Well," says the Rev. Canon MacColl, "may Mr. Matthew Arnold speak of that Penal Code, of which the monstrosity is not half known to Englishmen, and may be studied by them with profit." ("Arguments For and Against Home Rule," p. 60.)

CHAPTER V.

THE IRISH VOLUNTEER MOVEMENT AND FREE TRADE.

The nature and effects of the Irish Volunteer Movement have often been stated and explained. I can only touch upon this movement in a very cursory manner, confining myself strictly to its bearings on the commercial arrangements between Great Britain and Ireland. A very superficial study of Irish history will show that national movements have a tendency to grow out of controversies on trade and mercantile questions. Thus the destruction of the woollen trade by the English Parliament led Irish politicians to question the right of that Parliament to legislate for Ireland at all. William Molyneux, in his celebrated "Case of Ireland stated," published in 1698, asks, "Shall we of this kingdom be denied the birthright of every free-born English subject by having laws imposed on us when we are neither personally nor representatively present?"^[121] "That book," says Chief Justice Whiteside, "met with a fate which it did not deserve. The English Parliament ordered that it should be burned, and thereby much increased the estimation in which it was held in Ireland."^[122] Thus, too, the agitation against Wood's half-pence, a purely commercial topic, assumed insensibly a national complexion. In his fourth Drapier's letter, Swift changes the controversy into an examination of Ireland's political condition. "The remedy," he says, "is wholly in your own hands, and therefore I have digressed a little in order to refresh and continue that spirit so seasonably raised among you, and to let you see that by the laws of God, of nature, and of nations, and of your country, you are and ought to be as free a people as your brethren in England."^[123] Swift's prosecution by the Government of the day and its failure are well known. Lord Chief Justice Whiteside thus comments on his public conduct. "Had there been a few in the Irish Parliament possessed of the originality, energy, honesty, and capacity of Swift, the management of political affairs and the true interests of the country would have been speedily improved instead of being shamefully neglected. Swift created a public opinion; Swift inspired hope, courage, and a spirit of justifiable resistance in the people; Swift taught Irishmen they

had a country to love, to raise, and to cherish. No man who recalls the affectionate respect paid by his countrymen to Swift while he lived, to his memory when dead, can impute political ingratitude to be amongst the vices of the Irish people."^[124]

Then, again, besides actively disputing England's right to destroy the trade and manufactures of the country, there was another remedy which lay in the people's own hands. They could, by the exercise of self-control, use Irish manufactures alone.

"England," says Mr. Froude, "might lay a veto on every healthy effort of parliamentary legislation; but England could not touch the self-made laws which the conscience and spirit of the nation might impose upon themselves." Hely Hutchinson has pointed out, that "the not importing goods from England is one of the remedies recommended by the Council of Trade in 1676 for alleviating some distress that was felt at the time; and Sir William Temple, a zealous friend to the trade and manufactures of England, recommends to Lord Essex, then Lord Lieutenant, to introduce, as far as can be, a vein of parsimony throughout the country in all things that are not perfectly the native growths and manufactures. The people of England cannot reasonably object to a conduct of which they have given a memorable example. In 1697 the English House of Lords presented an Address to King William to discourage the use and wearing of all sorts of furniture and cloths not of the growth and manufacture of that kingdom, and beseech him, by his royal example, effectually to encourage the use and wearing of all sorts of furniture and wearing cloths that are the growth of that kingdom or manufactured there; and King William assures them that he would give the example to his subjects, and would endeavour to make it effectually followed. The reason assigned by the Lords for this Address was that the trade of the nation had suffered by the late long and expensive war. But it does not appear that there was any pressing necessity at the time, or that their manufacturers were starving for want of employment.

"Common sense must discover to every man that when foreign trade is restrained, discouraged, or prevented in any country, and where that country has the materials for manufactures, a fruitful soil, and numerous inhabitants, the home trade is its best resource. If this is thought by men of great knowledge to be the most valuable of all trades, because it makes the speediest and surest returns, and because it increases at the same time two

capitals in the same country, there is no nation on the globe whose wealth, population, strength, and happiness would be promoted by such a trade in a greater degree than ours."^[125]

The author of the "Commercial Restraints" was a barrister of great eminence, who had been Prime Serjeant, was a member of the Irish Privy Council, Principal Secretary of State, and Provost of Trinity College, and a distinguished member of the Irish Parliament. This book, however, obtained a reception similar to that accorded to the "Case of Ireland," and the fourth Drapier's letter. In the fly-leaf of the copy in the Library of the Honourable Society of the King's Inns, which I have utilised in arranging this treatise, there are the following observations:—"Of this remarkable book see the *Times* of February 14, 1846. Extract of a letter of Sir Valentine Blake, M.P. for Galway, in which he says, 'that immediately after its publication it was suppressed, and burned by the common hangman, and that Mr. Flood, in his place in the House of Commons, said he would give one thousand pounds for a copy, and that the libraries of all the three branches of the Legislature could not procure one copy of this valuable work.'" The editor of a new edition tells us that there are two copies of the work in the Library of Trinity College, Dublin, both of which have been recently obtained, and from one of them the reprint is taken.^[126] When Hely Hutchinson, in 1779, advocated "the necessity of using our own manufactures," he stated with accuracy that such arguments, though never so universal as at that time, were no new idea in Ireland. It had been recommended half a century before by Swift, and the celebrated Bishop Berkeley. "I heard," said Swift, writing in 1720, "the late Archbishop of Tuam (Dr. John Vesey) make a pleasant observation that Ireland would never be happy till a law was made for burning everything that came from England, except their people and their coals."^[127] Again, in 1727, he says, "The directions to Ireland are very short and simple, to encourage agriculture and home consumption, and utterly discard all importations that are not absolutely necessary for health or life."^[128] Bishop Berkeley, in the "Querist," published in 1731, asks these questions, which show clearly his views:—"Whether there be upon the earth any Christian or civilised people so beggarly wretched or destitute as the common Irish? Whether, nevertheless, there is any other people whose wants may be more easily supplied from home?"^[129] This advice was acted on by the Irish people "after fifty years of expectation." "A great figure," says Chief Justice

Whiteside, "now appears upon the stage of public life—Henry Grattan, who took his seat for Charlemont in December, 1775, and began his splendid, though chequered career. The condition of Ireland at this epoch was deplorable. Her industry was shackled, her trade was paralysed, her landed interest was depressed, her exchequer empty, her pension list enormous, her shores undefended, her army withdrawn. The policy and maxims of Swift were revived, a spirit of discontent and a spirit of independence pervaded the nation; the colonies had revolted, republican ideas were afloat in the world, and Ireland was menaced with invasion. The Government, on being applied to for troops, declared they had none to spare, and that Ireland must protect herself. The Volunteer Movement then commenced, and, to the amazement of ministers, they soon stood face to face with an armed nation."^[130]

Mr. Froude draws this picture of the condition of Ireland in 1779. "The grand juries represented that the fields and highways were filled with crowds of wretched beings half naked and starving. Foreign markets were closed to them. The home market was destroyed by internal distress, and the poor artisans who had supported themselves by weaving were without work and without food. They had bought English goods as long as they had the means to buy them. Now in their time of dire distress they had hoped the English Parliament would be their friend. They learnt with pain and surprise that the only boon which could give them relief was still withheld. They besought the king to interpose in their favour, and procure them leave to export and sell at least the coarse frieze blankets and flannels, which the peasants' wives and children produced in their cabins. Eloquence and entreaty were alike in vain. The English Parliament, though compelled at least to listen to the truth, could not yet bend itself to act upon it. The House of Commons still refused to open the woollen trade in whole or in part, and Ireland, now desperate and determined, and treading ominously in the steps of America, adopted the measures which long before had been recommended by Swift, and resolved to exclude from the Irish market every article of British manufacture which could be produced at home."^[131]

The Earl of Shelburne, speaking in the British House of Lords on the 1st of December, 1779, thus described the attitude of Ireland:—

"Ireland disclaimed any connection with Great Britain, she instantly put herself in a condition of defence against her foreign enemies; oppressed at

one time by England, and at length reduced to a state of calamity and distress experienced by no other country that ever existed, unless visited by war or famine, and perceiving that all prospect of justice or relief was in a manner finally closed, and that she must perish or work out her own salvation, she united as one man to rescue herself from that approaching destruction which seemed to await her. The people instantly armed themselves and the numbers armed soon increased to upwards of 40,000 men, and were daily augmenting. This most formidable body was not composed of mercenaries, who had little or no interest in the issue, but of the nobility, gentry, merchants, citizens, and respectable yeomanry, men able and willing to devote their time and part of their property to the defence of the whole and the protection and security of their country. The Government had been abdicated and the people resumed the powers vested in it, and in doing so were fully authorised by every principle of the Constitution, and every motive of self-preservation, and whenever they should again delegate their inherent power they firmly and wisely determined to have it so regulated and placed upon so large and liberal a basis that they should not be liable to suffer from the same oppression in time to come, nor feel the fatal effects and complicated evils of maladministration, of calamity without hope of redress, or of iron-handed power without protection.

"To prove that these were the declared and real sentiments of the whole Irish nation, he should not dwell upon this or that particular circumstance, upon the resolutions of country or town meetings, upon the language of the associations, upon the general prevalent spirit of all descriptions of men of all religions; matters of this kind, however true or manifest, were subject to and might admit of controversy. He would solely confine himself to a passage contained in a State paper, he meant the Address of both Houses of the Irish Parliament, declaring that nothing but the granting the kingdom a 'free trade' could save it from certain ruin. Here was the united voice of the country conveyed through its proper constitutional organs, both Houses of Parliament, to his Majesty, against which there was but one dissentient voice in the Houses, not a second, he believed, in the whole kingdom. Church of England men and Roman Catholics, Dissenters, and sections of all denominations, Whigs and Tories, if any such were to be found in Ireland, placemen, pensioners, and county gentlemen, Englishmen by birth, in short, every man in and out of the House, except the single instance

mentioned, had all united in a single opinion that nothing would relieve the country short of a free trade."^[132]

His lordship proceeds to explain the meaning of the expression "free trade," which was used in a sense different from the modern acceptation of that term:—

"A free trade, he was well persuaded, by no means imported an equal trade. He had many public and private reasons to think so. A free trade imported, in his opinion, an unrestrained trade to every part of the world, independent of the control, regulation, or interference of the British Legislature. It was not a speculative proposition, confined to theory or mere matter of argument; the people of Ireland had explained the context, if any ambiguity called for such an explanation; he received accounts from Ireland that a trade was opened between the northern part of Ireland and North America with the privity of Congress, and indemnification from capture by our enemies; that provision ships had sailed to the same place—nay, more, that Doctor Franklyn, the American Minister at Paris, had been furnished with full power to treat with Ireland upon regulations of commerce and mutual interest and support, and that whether or not any such treaty should take place, the mutual interests of both countries, their very near affinity in blood, and their established intercourse, cemented farther by the general advantages arising from an open and unrestrained trade between them, would necessarily perfect what had already actually begun."^[133]

Mr. Lecky thus accurately and distinctly describes the nature of the commercial arrangements under which Ireland obtained the limited free trade which she enjoyed, with some modifications, till the Union:—

"The fear of bankruptcy in Ireland; the non-importation agreements, which were beginning to tell upon English industries; the threatening aspect of an armed body, which already counted more than 40,000 men; the determined and unanimous attitude of the Irish Parliament; the prediction of the Lord-Lieutenant that all future military grants in Ireland depended upon his (Lord North's) course; the danger that England, in the midst of a great and disastrous war, should be left absolutely without a friend, all weighed upon his mind; and at the close of 1779, and in the beginning of 1780, a series of measures was carried in England which exceeded the utmost that a few years before the most sanguine Irishman could have either expected or

demand. The Acts which prohibited the Irish from exporting their woollen manufactures and their glass were wholly repealed, and the great trade of the colonies was freely thrown open to them. It was enacted that all goods that might be legally imported from the British settlements in America and Africa to Great Britain, may be in like manner imported directly from those settlements into Ireland, and that all goods which may be legally exported from Great Britain into those settlements may in like manner be exported from Ireland, on the sole condition that duties equal to those in British ports be imposed by the Irish Parliament on the goods and exports of Ireland. The Acts which prohibited carrying gold and silver into Ireland were repealed. The Irish were allowed to import foreign hops. They were allowed to become members of the Turkey Company, and to carry on a direct trade between Ireland and the Levant Sea.^[134]

"Thus fell to the ground that great system of commercial restriction which began under Charles II., which under William III. acquired a crushing severity, and which had received several additional clauses in the succeeding reigns. The measures of Lord North, though obviously due in a great measure to intimidation and extreme necessity, were at least largely, wisely, and generously conceived, and they were the main sources of whatever material prosperity Ireland enjoyed during the next twenty years. The English Parliament had been accustomed to grant a small bounty—rising in the best years to £13,000—on the importation into England of the plainer kinds of Irish linen. After the immense concessions made to Irish trade, no one could have complained if this bounty had been withdrawn, but North determined to continue it. He showed that it had been of real use to the Irish linen manufacture, and he strongly maintained that the prosperity of Ireland must ultimately prove a blessing to England."^[135]

Speaking at the Guildhall in Bristol in 1780, Edmund Burke thus described the concessions to Ireland and the series of circumstances to which these measures owed their origin:—

"The whole kingdom of Ireland was instantly in a flame. Threatened by foreigners, and, as they thought, insulted by England, they resolved at once to resist the power of France and to cast off yours. As for us, we were able neither to protect nor to restrain them. Forty thousand men were raised and disciplined without commission from the Crown; two illegal armies were seen with banners displayed at the same time and in the same country. No

executive magistrate, no judicature in Ireland, would acknowledge the legality of the army which bore the King's commission, and no law or appearance of law authorised the army commissioned by itself. In this unexampled state of things, which the least error, the least trespass on our part would have hurried down the precipice into an abyss of blood and confusion, the people of Ireland demanded a freedom of trade with arms in their hands. They interdict all commerce between the two nations; they deny all new Supply in the House of Commons, although in time of war; they stint the trust of the old revenue given for two years to all the King's predecessors to six months. The British Parliament, in a former session frightened into a limited concession by the menaces of Ireland, frightened out of it by the menaces of England, were now frightened back again, and made an universal surrender of all that had been thought the peculiar, reserved, uncommunicable rights of England—the exclusive commerce of America, of Africa, of the West Indies, all the enumerations of the Acts of Navigation, all the manufactures—iron, glass, even the sacred fleece itself—all went together. No reserve, no exception, no debate, no discussion. A sudden light broke in upon us all. It broke in, not through well-contrived and well-disposed windows, but through flaws and breaches, through the yawning chasms of our ruin. We were taught wisdom by humiliation. No town in England presumed to have a prejudice or dared to mutter a petition. What was worse, the whole Parliament of England, which retained authority for nothing but surrenders, was despoiled of every shadow of its superintendence. It was, without any qualification, denied in theory as it had been trampled upon in practice."[\[136\]](#)

"The chain," says Mr. Froude, "was allowed to remain till it was broken by the revolt of the American colonies, and Ireland was to learn the deadly lesson that her real wrongs would receive attention only when England was compelled to remember them through fear."[\[137\]](#)

The commercial privileges thus obtained would have been practically valueless unless accompanied with legislative independence. I have explained the system by which measures proposed by the Irish Parliament were robbed of their efficiency by the action of the English and Irish Privy Councils. "To prevent," says Mr. Froude, "the Irish Parliament from being troublesome, it was chained by Poynings' Act; and when the Parliament was recalcitrant, laws were passed by England over its head." At this time the

English Privy Council actively exercised its influence on the commercial legislation of the Irish Parliament. "The business of sugar-refining had recently taken great head in Ireland, and the Irish Parliament sought to defend it against the English monopoly by an import duty on refined sugar; while they sought to give it a fair stimulus by admitting raw sugar at a low rate. This the Privy Council reversed, reducing the duty on refined sugar 20 per cent. under the drawback allowed in England to the English refiner on export, and thereby giving the latter a virtual premium to that amount, and also increasing the duty on the raw sugar. The time was ill-chosen for further invasions on Irish rights."^[138] "Several minor circumstances concurred to exasperate the Irish people still further, and to render irrevocable and, soon after, irresistible, their determination to have a free Parliament, without which they said they never could obtain the extension of their trade amongst other benefits sought, nor even be sure of preserving what had been conceded to them."^[139] Chief Justice Whiteside has given, in a few words, this spirited and accurate description of the attainment of Irish legislative independence—"Down went Poynings' Law, useful in its day; down went the Act of Philip and Mary; down went the obnoxious statute of George I.; the Mutiny Bill was limited; restrictions on Irish trade vanished; the ports were opened; the Judges were made irremovable and independent. I cannot join in the usual exultation at the proceedings of the volunteers; on the contrary, I regret their occurrence. Not that I think the resolutions carried at Dungannon were in themselves unjust; not that I would hesitate to claim for Ireland all the rights possessed by our English fellow-subjects; but because all these inestimable advantages were not granted by the wisdom of the Government, through the recognised channel of Parliament, and were carried at the point of the bayonet. The precedent was dangerous. Had Walpole been alive he would have repented his blunder in listening to Primate Boulter, and refusing to be advised by the counsels of Swift. But the deed was done."^[140] On the 16th of April, 1782, in the Irish House of Commons, Grattan thus expressed his high-wrought enthusiasm:—

"I found Ireland on her knees. I watched over her with an eternal solicitude. I have traced her progress from injuries to arms, and from arms to liberty. Spirit of Swift, spirit of Molyneux, your genius has prevailed. Ireland is now a nation. In that new character I hail her, and bowing in her august presence, I say, *Esto Perpetua*."^[141]

FOOTNOTES:

- [121] Reg. v. O'Connell, p. 533. This observation was made by Mr. (afterwards Chief Justice) Whiteside in his speech in defence of Mr. (now Sir C. Gavan) Duffy, in the State Trials, 1844.
- [122] "Case of Ireland," p. 105.
- [123] Swift's Works (Scott's Edition), vol. vi., p. 448.
- [124] "Life and Death of the Irish Parliament," p. 89.
- [125] "Commercial Restraints," pp. 211-213.
- [126] "Commercial Restraints," re-edited, with sketch of the author's life, introduction, notes, and index, by Rev. W. G. Carroll, M.A. Dublin: M. H. Gill & Son.
- [127] Swift's Works (Scott's Edition), vol. vi., p. 275.
- [128] *Ibid.*, vol. vii., p. 182.
- [129] "Tracts and Treatises" (Ireland), 2, p. 161.
- [130] "Life and Death of the Irish Parliament," p. 125.
- [131] "English in Ireland," ii. 239, 240.
- [132] The dissentient voice was that of Sir R. Heron, Secretary to the Lord-Lieutenant.
- [133] "Parliamentary Debates," 14, pp. 83-85.
- [134] 20 Geo. III. (Eng.), cc. 6, 10, 18.
- [135] "Eighteenth Century," iv. 500, 501. Some commercial concessions which were, however, manifestly insufficient, had been previously granted. See "Eighteenth Century," iv., pp. 429, 430, 451.
- [136] Edmund Burke on "Irish Affairs," edited by M. Arnold, pp. 129, 130.
- [137] "English in Ireland," vol. ii., p. 104.
- [138] "An Argument for Ireland," by J. O'Connell, M.P., p. 171.
- [139] "An Argument for Ireland," p. 172.
- [140] "Life and Death of the Irish Parliament," p. 126.
- [141] Grattan's "Speeches," i. 183.
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CHAPTER VI.

THE COMMERCIAL ARRANGEMENTS BETWEEN ENGLAND AND IRELAND, 1782-1800.

The commercial relations between England and Ireland in the interval between 1782 and 1800 should be clearly understood.

Ireland had, by the Acts of 1779 and 1780, obtained the freedom of foreign and colonial trade, both of export and of import.

By an Act of 1793, she had obtained liberty to re-export foreign and colonial goods from her own shores to England.^[142]

She had, by an English Act of the same year, got the illusory privilege of having an eight-hundred-ton East Indiaman to make up a cargo for the East in her ports. But she had not free trade to the East, nor had she the admission to English ports for her goods.^[143] "The practical boon," says Mr. Butt, "that was won for the Irish nation (by the Volunteers), was the right of the Parliament of Ireland to control our own harbours, and to regulate our own trade. Of course the trade of Ireland was subject to the interference which England could exercise by her dominion over the colonies and dependencies of the Imperial Crown. A law which would have prohibited the exportation of Irish goods either to England or France or Canada, would have been beyond the power of the English Parliament to pass, but it was perfectly competent to that Parliament to prohibit the importation of these goods into England or Canada, just in the same manner as the French Government might have prohibited their importation into France. The English Parliament was the supreme legislature for England and the colonies, and had just the same power of legislating against the importation of Irish products, as they would have had against those of Holland or of France."

Thus stood the Irish Parliament in constitutional position from 1782 until its dissolution.^[144]

England, as we have seen, had laid prohibitory duties on Irish manufactures, whereas Ireland, bound by the chain of Poynings' Law, was unable to protect her own industries. "It was very natural," in the words of Mr. Pitt, "that Ireland, with an independent legislature, should now look for perfect equality."

In 1783 Mr. Griffiths, advocating in the Irish House of Commons the protection of Irish manufacturers, said: "Lord North knew very well when he granted you a free trade that he gave you nothing, or, at most, a useless bauble, and when petitions were delivered against our free trade by several manufacturing towns in England, he assured them in circular letters that nothing effectual had or should be granted to Ireland."^[145]

The Irish Parliament, however, on obtaining legislative independence, refrained from measures of retaliation in the hope that the commercial relations of both countries would be settled on a satisfactory basis.

Mr. Pitt, in introducing in the English House of Commons his celebrated Commercial Propositions for the regulation of trade between England and Ireland, thus speaks: "To this moment (February, 1785) no change had taken place in the intercourse between Great Britain and Ireland themselves. Some trivial points, indeed, had been changed, but no considerable changes had taken place in our manufactures exported to Ireland, or in theirs imported to England. That, therefore, which had been done was still believed by the people of Ireland to be insufficient, and clamours were excited and suggestions published in Dublin and elsewhere of putting duties on our products and manufactures under the name of protecting duties."^[146]

Chief Justice Whiteside thus states summarily the scope of Mr. Pitt's propositions:—

"It was proposed to allow the importation of the produce of all other countries through Great Britain into Ireland, or through Ireland into Great Britain, without any increase of duty on that account. It was proposed, as to any article produced or manufactured in Ireland or in England, where the duties were then different on importation into either country, to reduce those duties in the kingdom where they were highest down to the lower scale. And it was asked from Ireland that when the gross hereditary revenue should rise above a fixed sum, the surplus should be appropriated towards the support of the naval force of the Empire. These propositions passed

through both branches of the Irish Legislature, were remitted to England, and by Pitt laid before the British House of Commons. He was immediately attacked by Fox and the Whigs, aided by Lord North, who one and all declared themselves the uncompromising enemies of free trade. And these factious men declared that in the interests of the British manufacturers they could not allow Irish fustians to be brought into England to ruin English manufacturers. The fustian they affected to fear was nothing to be compared with the fustian of their speeches. The enlightened views of the great Conservative minister were in a measure baffled by the shameful opposition of Fox, and of his friends in Parliament, and of thick-headed cotton manufacturers out of the House. The result was that Pitt was coerced to introduce exceptions and limitations. The eleven propositions grew up to twenty, the additional propositions relating to various subjects, patents, copyrights, fisheries, colonial produce, navigation laws, the enactment as to which was that whatever navigation laws were then, or should thereafter be enacted by the Legislature of Great Britain, should also be enacted by the Legislature of Ireland; and in favour of the old East India Company monopoly, Ireland was debarred from all trade beyond the Cape of Good Hope to the Straits of Magellan." "There seemed to be nothing hurtful to the pride of Ireland in the affair. But when Fox found that his great rival defeated him on the commercial part of the question, he artfully, as Lord Stanhope shows, changed his ground of attack, and availing himself of the limitations which Pitt had been compelled to introduce into his original scheme, Fox cried out that this was a breach of Ireland's newly-granted independence. 'I will not,' said Fox, with incredible hypocrisy, or with incredible folly, 'I will not barter English commerce for Irish slavery, this is not the price I would pay, nor is this the thing I would purchase.'" "When the twenty propositions of Mr. Pitt were returned to the Irish Parliament, they encountered a fierce and protracted opposition. Mr. Grattan's speech has been extolled as one of his ablest—it is not intemperate. His chief objection was to the fourth resolution, by which he said, 'We are to agree to subscribe whatever laws the Parliament (of England) shall subscribe respecting navigation; we are to have no legislative power—then there is an end of your free trade and of your free Constitution.' He also curiously objected that the measure was 'an union—an incipient and a creeping union—a virtual union establishing one will in the general concerns of commerce and navigation, and reposing that will in the Parliament of Great Britain.'"

"Dublin was illuminated, the people exulted in the abandonment of the scheme."^[147]

"It was not," says Mr. John O'Connell, "till after a fair experiment and delay that the Irish Parliament, despairing of getting England to terms by fair means, commenced retaliation. To this we have the incontestable testimony of the Commissioners of Revenue Inquiry in 1822, an authority by no means disposed to be over-favourable to Irish interests or over-anxious for the credit of the Irish Parliament. In their fourth report, speaking of the system of restrictions on English goods and bounties on their own, to which that Parliament had recourse, they say:

"Ireland was undoubtedly instigated to the adoption of this course by the exclusive spirit of the commercial policy of England. It will be found that few exceptions in favour of the sister kingdom were inserted in the list of goods absolutely prohibited to be imported into this country (England), in which list all goods made of cotton-wool, every description of manufactured woollen, silk, and leather, together with cattle, sheep, malt, stuffs, and other less important articles were at one time comprehended. In this embarrassing situation of exclusion from the markets of Great Britain, and deriving little assistance from foreign trade, Ireland had no other course to pursue for the protection of her own industry except that of maintaining, by restrictive duties on the importations from Great Britain, the manufacturing means she possessed for the supply of her own markets."^[148]

That Ireland made a great advance in prosperity in the interval between 1782 and 1800 is in my judgment incontrovertible.

Mr. O'Connell, when conducting his own defence in the State Trials of 1844, thus spoke with reference to this subject:

"I may be asked whether I have proved that the prophecy of Fox was realised—that the prosperity that was promised to Ireland was actually gained by reason of her legislative independence. Now, pray, listen to me; I shall tell you the evidence by which I shall demonstrate this fact. It is curious that the first of them is from Mr. Pitt, again in the speech he made in 1799 in favour of the resolutions for carrying the Union. If he could have shown that Ireland was in distress and destitution, that her commerce was lessened, that her manufactures were diminished, that she was in a state of suffering and want by reason of, or during the legislative independence of

the country, of course he would have made it his topic in support of his case, to show that a separate Legislature had worked badly, and produced calamities and not blessings; but the fact was too powerful for him. He had ingenuity to avail himself of the fact, which fact he admitted; and let us see how he admitted it. He admitted the prosperity of Ireland, and here was his reasoning. Now, mark it. 'As Ireland,' he said, 'was so prosperous under her own Parliament, we can calculate that the amount of her prosperity will be trebled under a British Legislature.' He first quoted a speech of Mr. Foster's in 1785, in these words:—"The exportation of Irish produce to England amounts to two millions and a half annually, and the exportation of British produce to Ireland amounts to one million." Instead of saying, 'You are in want and destitution; unite with England, and you will be prosperous,' he was driven to admit this: 'Ireland is prosperous now with her own Parliament, but it will be trebly prosperous when you give up that Parliament, or have it joined with the Parliament of England.' So absurd a proposition was never yet uttered; but it shows how completely forced he was to admit Irish prosperity, when no other argument was left in his power; but the absurd observation I have read to you. He gives another quotation from Foster, in which it is said Britain imports annually £2,500,000 of our products, all, or nearly all, duty free, and we import a million of hers, and raise a revenue on almost every article of it. This relates to the year 1785. Pitt goes on to say: 'But how stands the case now (1799)? The trade at this time is infinitely more advantageous to Ireland. It will be proved from the documents I hold in my hand—as far as relates to the mere interchange of manufactures—that the manufactures exported to Ireland from Great Britain in 1797 very little exceeded one million sterling (the articles of produce amount to nearly the same sum); whilst Great Britain, on the other hand, imported from Ireland to the amount of more than three millions in the manufacture of linen and linen-yarn, and between two and three millions in provisions and cattle, besides corn and other articles of produce.' 'That,' said Mr. Pitt, 'was in 1785, three years after her legislative independence; that was the state of Ireland.' You have seen, gentlemen, that picture. You have heard that description. You have heard that proof of the prosperity of Ireland. She then imported little more than one million's worth of English manufacture; she exported two and a half millions of linen and linen-yarn, adding to that the million of other exports. There is a picture given of her internal prosperity. Recollect that we now (1844) import

largely English manufactures, and that the greatest part of the price of these manufactures consists of wages which the manufacturer gives to the persons who manufacture them. £2,500,000 worth of linen and linen-yarn were exported, and one million of other goods. Compare that with the present state of things. Does not every one of you know there is scarcely anything now manufactured in Ireland, that nearly all the manufactures used in Ireland are imported from England? I am now showing the state of Irish prosperity at the time I am talking of. I gave you the authority of Foster (no small one) and of Pitt for Irish prosperity during that time. I will give you the authority of another man that was not very friendly to the people of this country—that of Lord Clare. Lord Clare made a speech in 1798, which he subsequently published, and in which I find this remarkable passage, to which I beg leave to direct your particular attention. 'There is not,' said his lordship, 'a nation on the face of the habitable globe which has advanced in cultivation, in manufactures, with the same rapidity in the same period as Ireland' (namely, from 1782 to 1798). That was the way in which Irish legislative independence worked, and I have in support of it the evidence of Pitt, Foster, and Lord Clare; and Lord Grey, in 1799, talking of Scotland in the same years, says: 'In truth, for a period of more than forty years after the [Scottish] Union, Scotland exhibited no proofs of increased industry and rising wealth.' Lord Grey, in continuation, stated that 'till after 1748 there was no sensible advance of the commerce of Scotland. Several of her manufactures were not established till sixty years after the Union, and her principal branch of manufacture was not set up, I believe, till 1781. The abolition of the heritable jurisdictions was the first great measure that gave an impulse to the spirit of improvement in Scotland. Since that time the prosperity of Scotland has been considerable, but certainly not so great as that of Ireland has been within the same period.' Lord Plunket, in his speech in 1799, in one of his happiest efforts of oratory, speaks of her as of 'a little island, with a population of four or five millions of people, hardy, gallant, and enthusiastic, possessed of all the means of civilisation, agriculture, and commerce well pursued and understood, a Constitution fully recognised and established, her revenues, her trade, her manufactures thriving beyond her hope, or the example of any other country of her extent, within these few years advancing with a rapidity astonishing even to herself, not complaining of deficiency in these respects, but enjoying and acknowledging her prosperity.'

"Gentlemen of the Jury, I will now direct your attention to such documents as will tend to corroborate the facts contained in those I have already adverted to. You have heard that in 1810 a meeting was held in Dublin to petition the Legislature for a Repeal of the Union. I will read an unconnected passage from a speech delivered by a gentleman belonging to a most respectable house in this city.^[149] It is as follows:—'Some of us remember this country before we recovered and brought back our Constitution in the year 1782. We are reminded of it by the present period. Then as now our merchants were without trade, our shopkeepers without customers, our workmen without employment; then as now it became the universal feeling that nothing but the recovery of our rights could save us. Our rights were recovered, and how soon afterwards, as if by magic, plenty smiled on us, and we soon became prosperous and happy.' Let me next adduce the testimony of a class of citizens who, from their position and the nature of their avocations, were well calculated to supply important evidence on the state of Ireland subsequent to the glorious achievements of 1782. The bankers of Dublin held a meeting on the 18th of December, 1798, at which they passed the following resolutions:—'Resolved, that since the renunciation of the power of Great Britain in 1782 to legislate for Ireland, the commerce and prosperity of this kingdom have eminently increased,' 'Resolved, that we attribute these blessings, under Providence, to the wisdom of the Irish Parliament.' The Guild of Merchants met on the 14th January, 1799, and passed a resolution declaring 'That the commerce of Ireland has increased, and her manufactures improved beyond example, since the independence of this kingdom was restored by the exertions of our countrymen in 1782. Resolved, that we look with abhorrence on any attempt to deprive the people of Ireland of their Parliament, and thereby of their constitutional right and immediate power to legislate for themselves.' I have given abundance of proofs, from extracts I have read, of the prosperity of Ireland under the fostering care of her own Parliament. A Parliamentary document shows that, from 1785 to the period of the Union, the increase in the consumption of teas in Ireland was 84 per cent., while it was only 45 per cent. in England. The increase of tobacco in Ireland was 100 per cent., in England 64; in wine, in Ireland 74 per cent., in England 52; in sugar, 57 per cent. in Ireland, and in England 53; in coffee, in Ireland 600 per cent., in England 75. You have this proof of the growing prosperity of Ireland from

the most incontestable evidence. No country ever so rapidly improved as Ireland did in that period."^[150]

FOOTNOTES:

[142] 33 Geo. III. (Eng.), c. 63.

[143] "An Argument for Ireland," p. 210.

[144] "Irish Federalism," pp. 38, 39.

[145] "Irish Debates," iii. 133.

[146] "Parliamentary Register," xvii., p. 250.

[147] "Life and Death of the Irish Parliament," pp. 142-145. Mr. Morley's account of the part taken by Fox in this transaction is substantially in accord with that given by Chief Justice Whiteside. See "English Men of Letters"—"Edmund Burke," by John Morley, p. 125.

[148] "An Argument for Ireland," p. 211.

[149] A Mr. Hutton, the head of a great carriage manufactory in Dublin.

[150] "R. v. O'Connell," pp. 623-626. This part of Mr. O'Connell's speech is simply an echo of the speech he delivered in 1843 during the discussion in the Dublin Corporation on Repeal of the Union, in which he relied on the same documentary evidence of Ireland's material prosperity between 1782 and 1800. These proofs could easily be multiplied. Thus Mr. Jebb, afterwards a Justice of the Court of King's Bench in Ireland, published a pamphlet in 1798, in which he says: "In the course of fifteen years our commerce, our agriculture, and our manufactures have swelled to an amount that the most sanguine friends of Ireland could not have dared to prognosticate."

CHAPTER VII.

THE COMMERCIAL ARRANGEMENTS BETWEEN ENGLAND AND IRELAND EFFECTED BY THE ACT OF LEGISLATIVE UNION.

The commercial arrangements effected between England and Ireland at the time of the Union are embodied in the sixth article of the Act of Union. This article provides that in respect of trade and navigation the subjects of Great Britain and Ireland are to be on the same footing from the 1st of January, 1801; that there are to be no duties or bounties on the exportation of produce of one country to the other; that all articles (except certain specified articles scheduled, which were to be subject to certain countervailing duties) the produce of either country are to be imported free from duty; that articles enumerated in Schedule II. are to be subject for twenty years to the duties therein mentioned; that the woollen manufacturers are to pay on importation into each country from the other the duties now payable on importation into Ireland; that the duties on salt, hops, and wools are not to exceed the duties that were then paid on importation into Ireland; that the duties on calicoes and muslins are to be liable to the duties then payable on these commodities on importation from Great Britain to Ireland till the 5th of January, 1808; that after that date these duties are to be reduced to 10 per cent. till January 5th, 1821, and then to cease altogether; that duties on cotton-yarn and cotton-twist are to be liable to the duties then payable on these commodities^[151] till January 5th, 1808; that these duties are to be reduced annually from that date, and on the 5th of January, 1816, to cease altogether; that the produce of either country, subject to internal duty, is, on importation into each country, to be subject to countervailing duty; that the produce of either country exported through the other is to be subject to the same charges as if it had been exported directly from the country producing it; that duties charged on the import of foreign or colonial produce into either country are, on their export to the other, to be drawn back so long as the expenditure of the United Kingdom shall be defrayed by proportional contributions, but that this provision is not to extend to duties on corn.

The Speaker of the Irish Commons—the Right Hon. John Foster (afterwards Lord Oriel)—was the chief among several able opponents of these regulations. In 1799 and in 1800 he made powerful speeches in opposition, and went largely into the subject of the commercial relations of the two countries, and exposed their past and future inequalities and injustices towards Irish interests. His objections to the 6th Article of Union were, briefly, as follows:—

"That they lowered all protecting duties that were above 10 per cent. to that amount, and thus exposed the infant manufactures of Ireland (which the Irish Parliament had in latter years begun to protect) to the overwhelming competition of the great capital and long-established skill and ability of England. That no less than seventy articles of our manufacture would thus be injured, and our cotton manufactures in particular, in which we had begun to make most promising advances, would be nearly ruined. That no preference over foreign goods in the British market was given. That the 'new and excessive' duties on salt were made perpetual, those on hops and coals unalterable. That our brewery was left unprotected, etc., etc."

The opponents of the Union drew up a solemn and elaborate protest in order to perpetuate on the records of Parliament, and hand down to posterity, their views on that subject. Lord Corry moved the Protest and Address to the King, which thus speaks of the commercial arrangements proposed and subsequently carried out under the provisions of the Act of Union: "Were all the advantages which without any foundation they have declared that this measure offers, to be its instant and immediate consequence, we do not hesitate to say expressly that we could not harbour the thought of accepting them in exchange for our Parliament, or that we could or would barter our freedom for commerce, or our constitution for revenue; but the offers are mere impositions, and we state with the firmest confidence that in commerce or trade their measure confirms no one advantage, nor can it confirm any, for by your Majesty's gracious and paternal attention to this your ancient realm of Ireland, every restriction under which its commerce laboured has been removed during your Majesty's auspicious reign, and we are now as free to trade to all the world as Britain is. In manufactures, any attempt it makes to offer any benefit which we do not now enjoy is vain and delusive, and whenever it is to have effect, that effect will be to our injury. Most of the duties on imports which operate as protections to our

manufactures, are under its provisions either to be removed or reduced immediately, and those which will be reduced are to cease entirely at a limited time, though many of our manufacturers owe their existence to the protection of those duties, and though it is not in the power of human wisdom to foresee any precise time when they may be able to thrive without them. Your Majesty's faithful Commons feel more than an ordinary interest in laying this fact before you, because they have under your Majesty's approbation raised up and nursed many of those manufactures, and by so doing have encouraged much capital to be vested in them, the proprietors of which are now to be left unprotected, and to be deprived of the Parliament on whose faith they embarked themselves, their families, and properties in the undertaking."[\[152\]](#)

Mr. Pitt could not have been ignorant of the effect which English competition would produce on the infant and practically unprotected manufactures of Ireland. Thus fifteen years previously, when introducing his Commercial Propositions of 1785 in the English House of Commons, he calmed the fears and raised the hopes of the English manufacturers:—

"It was said that our manufactures were all loaded with heavy taxes. It was certainly true, but with that disadvantage they had always been able to triumph over the Irish in their own markets, paying an additional ten per cent. on the importation to Ireland, and all the charges. But the low price of labour was mentioned. Would that enable them to undersell us? Manufacturers thought otherwise—there were great obstacles to the planting of any manufacture. It would require time for arts and capital, and the capital would not increase without the demand also, and in an established manufacture improvement was so rapid as to bid defiance to rivalry."[\[153\]](#)

The Irish Parliament, in wishing to protect their infant manufactures, were strictly within the lines of modern economic science. Thus Mr. John Stuart Mill speaks of the wisdom of protecting duties in countries whose conditions are similar to those of Ireland as described by Mr. Pitt:—

"The only case in which, on mere principles of political economy, protecting duties can be defensible, is when they are imposed temporarily (especially in a young and rising nation) in the hopes of naturalising a foreign industry in itself perfectly suitable to the circumstances of the

country. The superiority of one country over another in a branch of production often arises only from having begun it sooner. There may be no inherent advantage on one part or disadvantage on the other, but only a present superiority of acquired skill and experience. A country which has this skill and experience yet to acquire may in other respects be better adapted to the production than those that were earlier in the field; and, besides, it is a just remark of Mr. Rae that nothing has a greater tendency to promote improvements in any branch of production than its trial under a new set of conditions. But it cannot be expected that individuals should at their own risk, or rather to their certain loss, introduce a new manufacture and bear the burthen of carrying it on until the producers have been educated up to the level of those with whom the processes are traditional. A protecting duty continued for a reasonable time will sometimes be the least inconvenient mode in which the nation can tax itself for the support of such an experiment. But the protection should be confined to cases in which there is good ground of assurance that the industry which it fosters will, after a time, be able to dispense with it, nor should the domestic producers ever be allowed to expect that it will be continued to them beyond the time necessary for a fair trial of what they are capable of accomplishing."[\[154\]](#)

The Irish manufactures, which had revived by the protecting care of the Irish Parliament, died when that safeguard was removed.

Mr. Bushe, who was eighteen years Solicitor-General under a Tory Administration, and twenty years Chief Justice of Ireland, thus briefly described in the Irish Parliament the course of policy pursued by England towards the "sister country":—

"For centuries have the British nation and Parliament kept you down, shackled your commerce, paralysed your exertions, despised your character, and ridiculed your pretensions to any privileges, commercial or constitutional."[\[155\]](#)

"I cannot think," says Mr. Chaplin, from his place in the English House of Commons, "that any reforms or remedial legislation that may be adopted (for Ireland) can be considered satisfactory or complete which do not include encouragement and, if necessary, assistance for the re-establishment of those industries which in former days were destroyed by the bitterly unjust and selfish policy of England."[\[156\]](#)

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FOOTNOTES:

[\[151\]](#) On importation from Great Britain to Ireland.

[\[152\]](#) Mr. Whiteside read this Protest in his speech in defence of Mr. C. G. Duffy, in the State Trials, 1844. ("R. v. O'Connell," pp. 528, 529.)

[\[153\]](#) "Parliamentary Register," xvii., pp. 255, 256.

[\[154\]](#) "Principles of Political Economy," p. 556.

[\[155\]](#) "Life of Plunket," ii., p. 354.

[\[156\]](#) Hansard, 261, Third Series, p. 836.

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